



Republic of the Philippines
SENATE
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JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 21
TUESDAY, 1 SEPTEMBER 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 21

Tuesday, September 1, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:00 a.m., Tuesday, September 1, 2026, with the Senate sitting as an Impeachment Court, the Senate President, Win Gatchalian, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Sen. Juan Miguel "Migz" F. Zubiri led the prayer, to wit:

Dear Lord, we come to You today, humbly praying for wisdom and enlightenment as we fulfill our mandate as senator-judges. We understand the weight of our duty and our decisions, upon which the course of this country rests. And so, we ask You to please clear our minds of any preconceived judgments and help us listen with complete openness and impartiality.

We also pray that You guide our witnesses and both sides of the Court as they illuminate the way towards the unassailable facts of this trial. Keep us all in the right path. Keep us from straying towards misrepresentation and diversion from the truth.

Habang patuloy ang paglilitis na ito, dasal po namin na hindi ito maging dahilan para magkawatak-watak ang mamamayang Pilipino. Sa halip, sana ay maging mitsa ito ng tunay na pagkakaisa tungo sa malinis at tapat na pamamahala sa aming mahal na bansa.

This we ask in Jesus' Name, we pray. Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Sotto III, V. C.
Ejercito, J. V.	Tulfo, E. T.
Escudero, F. G.	Tulfo, R. T.
Gatchalian, W. T.	Villanueva, J.
Hontiveros, R.	Villar, C. A.
Lacson, P. M.	Villar, M. A.
Marcos, I. R.	Zubiri, J. M. F.
Padilla, R.	

With 15 senator-judges present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A), Cayetano (P), Go and Pangilinan were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judges Dela Rosa and Lapid were absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

MANIFESTATION OF SENATOR-JUDGE SOTTO

In connection with a newspaper report that Atty. Mae Divinagracia, Counsel for the Panel of Prosecutors, was not allowed to answer questions during the trial, Senator-Judge Sotto clarified that the *Journal* of the Impeachment Trial shows that the counsel was able to respond to most of the queries, although she was cut off on one or two occasions while citing Republic Act No. 6085. He explained that the law regulates the use of aliases and allows pseudonyms in the Philippines only for literary, cinema, television, and other entertainment purposes. He explained that a name constitutes an alias if it refers to an actual person using a name other than his own. In contrast, where there is no actual person that corresponds to the name, such name is fictitious or fake.

The Presiding Officer noted the manifestation and confirmed that Attorney Divinagracia was able to answer the query of Senator-Judge Padilla, although she was unable to elaborate further.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of the *Journal* of Impeachment Trial No. 20 (August 26, 2026) of the Senate sitting as an Impeachment Court and considered it approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered on behalf of the Panel of Prosecutors, and requested that Atty. Reynaldo Robles be recognized for the presentation and direct examination of the witness.

Atty. Shiela Sison entered the same appearances on behalf of the Respondent, and requested that Atty. Lindon Bacquel be recognized.

RULING AND DIRECTIVE OF THE PRESIDING OFFICER

Prior to the presentation of the witness of the Prosecution, the Presiding Officer made the following ruling and directive in relation to matters that had arisen in the last few days:

After Mr. Ortonio testified before this Court, an image of him allegedly wearing an earpiece was widely circulated on the Internet. We take this opportunity after verification that it was an AI-generated image and simply false.

The Chair wishes to take this opportunity and remind the parties that every witness must testify solely from his or her own knowledge, free from coaching or influence from counsel or any other person.

Again, to reiterate, *hindi totoo iyong lumalabas na mga litrato na diumano mayroong earpiece si Mr. Ortonio. Iyon po ay AI*. What he had was an ear piercing in the front fold helix of his ear, not an earpiece.

The underlying principle being cited by the Presiding Officer will be Section 21 (e) of A.M. No. 24-11-02 by the Supreme Court prohibiting the use of cell phones, tablets, or some other similar gadgets during video conferencing, by analogy. Also, basis would be the US case of *Villarreal versus Texas*, wherein a witness must provide his own account rather than one scripted or choreographed by any party, counsel, or any interested party; also citing the case of *Sky Development, Inc. versus Vistaview*, Docket No. 3D10-1274 of the US Supreme Court.

Accordingly, no witness while testifying shall possess, have access to, or use any earpiece, headset, cell phone, smartwatch, smart glasses, or any other similar device capable of transmitting or receiving information or communication. Witnesses are also prohibited from receiving or attempting to receive any communication, suggestion, answer, signal, message, or prompt from any person, whether inside or outside this Court, regardless of the means employed. The prohibition shall remain in force during recesses and until the witness is formally discharged by the Court. Consultation on unrelated matters, the use of any necessary medical accessibility, interpretation, or other device shall be subject to the Court's prior approval.

The Clerk, therefore, is hereby directed to 1) inform each witness of these directives prior to testifying; 2) secure all prohibited communication devices in the witness's possession before he or she is sworn in; and 3) obtain the witness's express confirmation on the record that he or she understands and shall comply with this directive.

Any violation shall be brought to the attention of the Chair and be dealt with accordingly under the Court's disciplinary powers. The directive shall take effect immediately and shall apply to the witness henceforth this Court will be receiving.

PRESENTATION OF WITNESS FOR THE PROSECUTION

The Presiding Officer instructed the Clerk of Court to call the Prosecution's witness, Col. Manaros M. Boransing II, Commanding Officer of Task Force Zamboanga, under the First Infantry (Tabak) Division, Philippine Army to the witness stand, after which the Clerk of Court administered the witness's oath.

The Presiding Officer then reminded Colonel Boransing of the Chair's earlier instruction prohibiting the use of any listening or similar devices while testifying, during recesses and lunch breaks, and until his formal discharge by the Court. Colonel Boransing confirmed that he understood the instruction.

OFFER OF TESTIMONY BY COUNSEL FOR THE PROSECUTION

Attorney Robles made the following offer of the witness' testimony:

Mr. Robles. The Prosecution is most respectfully offering the testimony of the witness to prove the following facts:

1. At the time relevant to our examination, Colonel Manaros Boransing II was the assistant chief of staff for civil-military operations of the 1st Tabak Division of the Philippine Army and was

the officer responsible for supervising and monitoring the youth leadership summits and information education campaign activities of his division from January to December 2023.

Sa panahong mahalaga sa kasong ito, si Colonel Manaros Boransing ay nagsilbing assistant chief of staff for civil-military operations ng 1st Infantry Tabak Division, Philippine Army. Siya ang opisyal na may tungkuling mangasiwa at mag-monitor ng mga civil-military operations ng kanilang dibisyon, kasama dito ang mga youth leadership summits at information education campaign activities.

2. The Philippine Army 1st Infantry Tabak Division, without any participation or confidential funding from the Department of Education, conducted eight youth leadership summits and 53 information education campaign activities in 2023.

Mula Enero hanggang Disyembre 2023, ang 1st Infantry Tabak Division ay nagsagawa ng walong leadership summits at limampu't tatlong information education campaign activities. Mga gawain ito ng Philippine Army, isinagawa ng Philippine Army, pinangasiwaan at minonitor (monitor) ni Colonel Boransing, at pangunahing pinondohan ng Philippine Army at kaukulang local government units para sa mga kabataang lumahok.

The Presiding Officer. With the indulgence of Attorney Robles, choose your language, Counsel. English if you want to use English, Filipino if you want to use Filipino. You do not need to translate it in Filipino anymore to save on the Court's time.

Mr. Robles. Yes, Your Honor. As you can see, Your Honor, I actually prepared my formal offer in straight English, Your Honor.

The Presiding Officer. You may read it. You may read it in Filipino if you want, Counsel.

Mr. Robles. Yes, Your Honor.

The Presiding Officer. And just simply flash it in English for those who—

Mr. Robles. Yes, Your Honor. But I was just saying, over the weekend, Your Honor, when some of my friends and relatives learned that I was going to be presenting, I was told that *kung puwede daw po Tagalog kasi tayo-tayo lang daw po iyong nagkakaintindihan kaya gusto nila sana kung puwede. Kaya ko po pinipilit i-translate po.*

The Presiding Officer. Then use Filipino, Counsel.

Mr. Robles. *Sige po.*

The Presiding Officer. You don't have to say it in English. Again, to save on the court's time, we don't need to translate each and every statement made or given in court. Kindly use Filipino if that is your desire.

Mr. Robles. *Sige po.* We'll go to the third offer.

3. *Sa kahilingan ni Usec Nolasco Mempin, noon ay Undersecretary for Administration ng DepEd, lumagda at nagpalabas si Colonel Boransing ng certification dated January 1, 2024. Ang kaniyang pag-unawa ay simple at malinaw, pinapatunayan lamang niya ang tagumpay ng naisagawa ng First Infantry Tabak Division na walong youth leadership summits at limampu't tatlong information education campaign activities noong 2023. Hindi niya pinapatunayan kung sino ang nagbigay ng impormasyon; hindi niya pinapatunayan na may informer na binayaran; hindi niya pinapatunayan na ang kanilang impormasyon ang dahilan ng tagumpay ng aktibidad; at lalong hindi niya pinapatunayan na may kaugnayan ang mga ito sa confidential funds ng DepEd.*
4. *Isinumite ng DepEd sa COA Intelligence and Confidential Funds Auditing Office bilang bahagi ng mga dokumentong diumano'y nagpapatunay sa tagumpay ng information gathering or surveillance activity na nagmula raw sa impormasyong binigay ng mga informers. Ginamit ito upang suportahan ang kabuuang halagang P15,540,000 na ibinayad umano bilang rewards mula sa confidential funds ng DepEd. Mga gastusing kinwestyon ng*

COA sa Audit Observation Memorandum No. 2024-015 na may petsang January 1, 2024. Ngunit walang kaalaman si Colonel Boransing na gagamitin ang kaniyang certification para sa layuning ito. Wala ring pinakitang ugnayan sa pagitan ng mga reward diumano na ibinayad ng DepEd at ang matagumpay na pagsasagawa ng YLS at IEC activities ng Philippine Army.

5. Ang YLS at IEC activities ay bahagi ng isang Army-wide program at ng taunang Programs, Projects, and Activities ng Philippine Army. Isinagawa na ang mga ito bago pa man naitalaga si Vice President Duterte bilang kalihim ng DepEd noong July 2022. Maging ang mga lugar kung saan isinagawa ang mga aktibidad noong 2023 ay pinili ng mga operating line units ng 1st Infantry Tabak Division ayon sa kani-kanilang areas of operation. Walang partisipasyon ang DepEd sa pagpili ng lugar.
6. Humingi ang DepEd ng sertipikasyon tungkol sa mga programa ng Philippine Army ngunit isinumite ito sa COA, ginamit ang dokumento na para bang pinapatunayan nito ang information gathering at surveillance activities ng DepEd at ang diumano'y pagbabayad sa mga informers nito. Ang patunay sa trabaho ng Philippine Army ay iprinisenta bilang patunay sa paggastos ng DepEd. Ang tagumpay ng mga programang pinlano, pinondohan, at isinagawa ng Philippine Army at mga LGU ay ginamit upang bigyang katuwiran ang P15.54 million na diumano'y ibinayad mula sa confidential funds ng DepEd. and
7. Bilang panghuli, ang testigo ay magpapatunay at kikilala din sa mga kaugnay na mga dokumento at videos, at iba pang mga bagay kaugnay ng paratang na maanomalyang paggamit sa confidential funds ng Respondent dito sa impeachment case na ito.

That is our offer, Your Honor.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Bacquel remarked that the offer of Colonel Boransing's testimony consists of conclusions of law rather than substantiated facts, and reserved the matter for cross-examination.

Presiding Officer Escudero noted the response of Attorney Bacquel, adding that it is an offer of testimony by the Prosecution.

DIRECT EXAMINATION OF THE WITNESS

Attorney Robles conducted the direct examination of the witness, Colonel Boransing, as follows:

Mr. Robles. Thank you very much, Your Honor.

Colonel Boransing, *magandang umaga po*.

Mr. Boransing. Yes, Sir. Good morning, Sir.

Mr. Robles. I hope you had a pleasant trip. *Malayo po iyong pinanggalingan ninyo.*

Mr. Boransing. Yes, Sir.

Mr. Robles. Sir, could you tell us what is your current position *sa* Armed Forces?

Mr. Boransing. Yes, Sir. I am currently the Commander of the Task Force Zamboanga under the 1st Infantry (Tabak) Division, Philippine Army, Sir.

Mr. Robles. *Natanggap ninyo po ba iyong subpoena na pinadala ng Impeachment Court para tumestigo kayo kaugnay ng certification na in-issue ninyo?*

Mr. Boransing. Yes, Sir. I received it at—August 25 at 1:09 p.m.

Mr. Robles. By the way, Sir, is this the first time you're testifying on this matter?

Mr. Boransing. I was called last October 2024 to the Lower House, the Congress, for an investigation in aid of legislation *po*.

Mr. Robles. Also on this matter, Sir?

Mr. Boransing. Specifically on this matter, Sir.

Mr. Robles. Would you know, Sir, which committee of the Lower House and on what day?

Mr. Boransing. I'm sorry, Sir. I can't recall.

Mr. Robles. If I show you, Sir, the TSN for the hearing, will you be able to determine whether or not that would be the hearing which you attended?

Mr. Boransing. Yes, Sir.

Mr. Robles. At this juncture, Your Honor, we request for authority for our Assisting Counsel, Attorney Robert John Salazar, to present to the witness the document that we intend to show him.

The Presiding Officer. Continuing authority to both Assisting Counsels are granted to approach the witness.

Yes, Attorney Lindon?

Mr. Bacquel. Your Honor, we object to the presentation of the document being confronted to the witness, considering that he testified that—he testified already that he cannot recall.

Mr. Robles. That's why we are confronting him with the document so—to ask him.

The Presiding Officer. Overruled. Overruled, Counsel. We'll allow it. Kindly confront the witness with the document.

Mr. Robles. At this juncture, Your Honor, we also request, for the benefit of the honorable senator-judges and for the viewing public, for us to be allowed to flash the document on the screen.

The Presiding Officer. Counsel is allowed to do so.

Chair would like to inform the senator-judges, as well as Counsel for the parties and the public that, the Court has already taken judicial notice of the proceedings of the House, particularly the Committee on Good Government and Public Accountability, but only as to the existence of that hearing and the statements made in that hearing, not as to the truth of the statements made therein. So you may do so, Counsel.

Mr. Robles. Thank you very much, Your Honor.

For the record, we are confronting the witness with the transcript of stenographic notes previously marked as Exhibit P-I-1-c for the Prosecution. As stated earlier, Your Honor, this is among the documents for which judicial notice was graciously granted by the honorable Presiding Officer.

Nakita ninyo po, Colonel, itong dokumento?

Mr. Boransing. Yes, Sir. And that was the committee, the Committee on Good Government and Public Accountability. I also saw the—my specific statements, and it's what was—

Mr. Robles. *Naaalala ninyo po ngayon kung ano iyong petsa?*

Mr. Boransing. Yes, Sir. October 17, 2024, Sir.

Mr. Robles. Okay. Thank you *po*.

So, *balik po muna tayo*. You are the Commanding Officer of the 1st (Tabak) Division or Task Force Zamboanga?

Mr. Boransing. Yes, Sir. Task Force Zamboanga, Sir.

Mr. Robles. Before your position *ngayon*, Sir, *bago po kayo na-promote, ano po iyong posisyon ninyo sa Armed Forces?*

Mr. Boransing. I was the Deputy Brigade Commander of the 102nd Infantry (Igsoon) Brigade, also under the 1st Infantry Tabak Division, from November to—November 2025 to May 2026.

Mr. Robles. *Iyon pong certification na sinabi ninyong tinstiguhan ninyo sa House of Representative, kailan ninyo po inisyu?*

Mr. Boransing. I issued it, I signed it, January 1, 2024, when I was then the Assistant Chief of Staff for Civil-Military Operations (G7) of the 1st Infantry Tabak Division.

Mr. Robles. *Sige po, iyon ang pag-usapan natin kasi* this is the position relevant to the testimony we intend to request from you.

Mr. Boransing. Yes, Sir.

Mr. Robles. As Assistant Chief of Staff for Civil-Military Operations *po ba, tama?*

Mr. Boransing. Yes, Sir.

Mr. Robles. Of the 1st Infantry Tabak Division, *i-clarify ko lang po doon sa hierarchy kasi* Assistant Chief of Staff *po kayo. Mayroon po bang* Chief of Staff for Civil-Military Operations?

Mr. Boransing. In the 1st Infantry Tabak Division, Sir, we have our Commander...

Mr. Robles. Yes.

Mr. Boransing. ... a major general. We have the Assistant Division Commander. Then we have the Chief of Staff of all the general staff. So that is why I am called the Assistant Chief of Staff because we have a Chief of Staff, which is with the rank of colonel, Sir. So, he oversees the general staff, Sir.

Mr. Robles. So, *ang question ko po*, just to clarify *lang po kasi medyo nakakalito po iyong terminology*, 'no.

Mr. Boransing. Yes, Sir.

Mr. Robles. Who is the top officer in your division with oversight or in charge of Civil-Military Operations?

Mr. Boransing. The Commander, Sir, but I advise him and do the planning for him, Sir.

Mr. Robles. So, you are the staff officer-in-charge *po?*

Mr. Boransing. Yes, Sir.

Mr. Robles. Okay. So would it be—who is in the 1st Infantry Division who has, among the staff officers, the effective oversight and supervision over all Civil-Military Operations of the division?

Mr. Boransing. It is the Assistant Chief of Staff for Civil-Military Operations (G7).

Mr. Robles. And that was your position at that time, Sir?

Mr. Boransing. That was my position a few years ago, Sir.

Mr. Robles. *Sige po*. Sir. Now, anyway *napag-usapan na rin po natin iyong certification na inisyu ninyo*.

Mr. Boransing. Yes, Sir.

Mr. Robles. If that certification is shown to you, will you be able to recognize it?

Mr. Boransing. Yes, Sir.

Mr. Robles. Attorney RJ. Colonel, I am showing you a document, which is captioned as a certification, with the date January 1, 2024, *puwede po bang pakitingnan ninyo lang po?*

Mr. Boransing. Yes, Sir.

Mr. Robles. For the record, Your Honor, this is the document previously marked as Exhibit P-I-22-a for the Prosecution.

Nakita ninyo na po, Colonel?

Mr. Boransing. Yes, Sir.

Mr. Robles. *Doon po sa—ano po iyong kaugnayan nito doon sa certification na inisyu ninyo?*

Mr. Boransing. That is a copy of the certification I issued.

Mr. Robles. *Ang nakalagay—mayroon po dito sa ibaba, bandang ibaba, bandang kanan, mayroon pong parang pirma sa taas ng printed na “Manaros M. Boransing II,” Colonel, Philippine Army, kanino pong pirma iyon?*

Mr. Boransing. The one I—the document I saw, it’s my signature but the one in the PowerPoint doesn’t have my signature, Sir.

Mr. Robles. Anyway, Your Honor, we will be following the document because that is the one marked in evidence.

Mr. Boransing. Yes, Sir.

Mr. Robles. According to our Legal Staff, it is because of data privacy that is why they had to mask your signature.

Mr. Boransing. Thank you very much, Sir.

Mr. Robles. Okay. *Dito po sa certification ninyo, Sir, mayroon kayong binanggit na pinapatunayan ninyo: conduct of eight activities for Youth Leadership Summit (YLS) with 531 participants and an Information Education Campaign with 53 activities and 9,428 participants in different schools in the area of operations of this Command. Ang tanong ko po sa inyo, Sir—bago ito, tanungin ko po muna kayo, ano po ba iyong duties and responsibilities ninyo dati po, noong kayo ay Assistant Chief of Staff for Civil-Military Operations?*

Mr. Boransing. Yes, Sir. As the Assistant Chief of Staff for Civil- Military Operations, I primarily advise the Commander of the 1st Infantry Division on matters pertaining to civil-military operations in our area of operations. I also make—draft the plans, operational plans for civil-military operations in the 1st Infantry Tabak area of operations. I supervise the implementation of the plans, and I also get all the data on our sub-units, subordinate units’ implementations of those plans, Sir.

Mr. Robles. Okay. Thank you po. *Ngayon po, balikan ko po iyong nakalagay sa certification ninyo, may terms po kasi na, kung puwedeng pakipaliwanag ninyo po. Ano po iyong ibig sabihin nitong “Youth Leadership Summit or YLS?”*

Mr. Boransing. Yes, Sir. The Youth Leadership Summit is a long-time Philippine Army program or Armed Forces of the Philippines program. It is implemented *via* interagency. We coordinate, we lead, but it is composed of all stakeholders in the area of operations. It was conceptualized and implemented primarily to stop the recruitment of youth, either students in school or out-of-school youth, to groups who are violent extremist. And this was started, I think, in 2002, Sir, by the Philippine Army, and adopted and it has been done, and it has been successful in answering the deceptions by different violent extremist groups. These are implemented in areas of—where the communist-inspired insurgents are, and also in Muslim areas where terrorist or other groups are operating, Sir.

Mr. Robles. Thank you, Sir. *Nabanggit ninyo po, long-time project na po ito ng Philippine Army.*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Tama po ba iyong narinig ko na 2002 pa po ito nag-umpisa?*

Mr. Boransing. The first official—according to the Army’s historical records, the first record was 2002 in the Southern Tagalog, Sir. Yes, Sir.

Mr. Robles. *Ano po ang kaugnayan nito sa regular Plans, Programs and Activities ng unit ninyo?*

Mr. Boransing. It is part of the regular program of the Philippine Army if it is requested by our subordinate unit, Sir.

Mr. Robles. *Iyon pong banggit ninyo kanina, multi-stakeholder po ito, pero sino po ang lead or primary agency na nag-i-implement nito?*

Mr. Boransing. We coordinate—the Philippine Army coordinates, Sir, but as much as possible, it is—we try to make it that it’s a whole-of-society and whole-of-government effort. So, we may instigate it or start the planning and the organization, but it is co-equal implementation, Sir.

Mr. Robles. Would it be correct to say that it is a project of the Army where you invite stakeholders?

Mr. Bacquel. Objection, Your Honor, leading.

Mr. Robles. Well, Sir—

The Presiding Officer. What does Counsel say? Attorney Rey?

Mr. Robles. Your Honor—anyway, we’ll reform the question.

The Presiding Officer. Kindly reform.

Mr. Robles. What is the lead agency insofar as these projects are concerned?

Mr. Boransing. Well, Sir, it’s the Army, and we try to have the local government unit involved as much as possible, Sir.

Mr. Robles. Okay. Sir, *ang tanong ko po, kanino po nanggagaling iyong pondo o budget para sa activity ng YLS?*

Mr. Boransing. It comes from several sources, Sir. Each participant, like each contingent, is funded by their agency. But the youth—we coordinate that it’s the provincial local government and the municipal or city local government who fund their participation. But for the other lecturers and participants from the other government agencies and other stakeholders, they fund their own expenses for the Youth Leadership Summit.

Mr. Robles. *Tama po ba sa Tagalog, kaniya-kaniyang bayad? Ganoon po ba?*

Mr. Boransing. Yes Sir.

Mr. Robles. Okay. *Iyon pong budget ng Army para sa YLS, kailan po ito hinahanda?*

Mr. Boransing. Well, of course, Sir, we follow the government budget process. It’s one year before. So, we—I’m not really an expert on the budget planning, Sir, but we submit our activities, I think, first quarter and second quarter that we want to be funded, and it goes along the process until it’s approved by the President.

Mr. Robles. *Pag sinabi po ninyo “first or second quarter,” of which year? Halimbawa po, ngayong taon itong project, kailan po isu-submit iyong budget?*

Mr. Boransing. So, the year minus one, Sir. So, if the budget is for 2027, it is 2026, Sir.

Mr. Robles. 2026.

Mr. Boransing. Yes, Sir.

Mr. Robles. So, one year before. *Ano po ang kasama pag nagsu-submit kayo ng proposal para sa activities?*

Mr. Boransing. Could you clarify the questions?

Mr. Robles. *Ang tanong ko po ganito: sapat na po ba iyong general description ng project or kailangang nandoon iyong mga detalye?*

Mr. Bacquel. Objection, Your Honor, leading.

Mr. Robles. Your Honor—

The Presiding Officer. Counsel—

Mr. Bacquel. Leading questions are not allowed in direct, Your Honor.

The Presiding Officer. Counsel, kindly reform.

Mr. Robles. Yes. *Ano po ang kailangang isama doon sa proposal para sa project?*

Mr. Boransing. Sir, as I said earlier, Sir, I am not really a—I'm not an expert on government budget process, but—

Mr. Robles. But as far as you know.

Mr. Boransing. Well, I think it follows the current government policy and SOP on what needs to be submitted for PAPs to be approved, Sir.

Mr. Robles. And as far as you know, what needs to be submitted?

Mr. Boransing. Well, on our part, Sir, in our subordinate units, we submit a specific—if you want to have a Youth Leadership Summit, the number of participants and the general area or province where it will be conducted, Sir.

Mr. Robles. Okay *po*. So, who decides who will be the participants to the summit?

Mr. Boransing. It's also—it will be the inter-agency group or what we call as a technical working group, Sir. It's composed of the Army, the PNP, the local DepEd, and other stakeholders, Sir. It varies from area, Sir. So, it depends on the area, Sir.

Mr. Robles. Okay. Sir, how frequently do you conduct these YLS summits in your area of operations?

Mr. Boransing. If I may, Sir, I think for 2023, Sir, there were eight, but this is because we—Usually, per year, we have more in the previous years, but because the threat was waning down in our area of operation, it was lessened. In previous years, Sir, I think I saw one of the records that it was many more. So, it depends on the threat level, Sir.

Mr. Robles. *Noon pong—Kanina po binanggit ninyo na 2002 pa nagsimula iyong—*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Pero dito sa unit po ninyo, sa 1st Tabak Division, sa pagkakaalam ninyo, sabi ninyo, based on records, kailan po kayo nag-umpisa ng Youth Leadership Summit?*

Mr. Boransing. I cannot recall, Sir, because we do not have records way back to 2002, Sir. But I recall, Sir, in 2005, we had a Youth Leadership Summit in Jolo, Sulu, Sir.

Mr. Robles. As early as 2005. For your unit, Sir?

Mr. Boransing. Yes, Sir. Sulu was then under the 1st Infantry Division, Sir.

Mr. Robles. So, *magbuhat po noong 2005, gaano po kadalas ninyong ginagawa?*

Mr. Boransing. I cannot answer, Sir. I don't have the relevant data, Sir.

Mr. Robles. Can you just give a general idea? Was it yearly, quarterly, every three years?

Mr. Boransing. It's definitely annually, Sir.

Mr. Robles. Annually?

Mr. Boransing. Yes, Sir. And it is based on the threat level, Sir.

Mr. Robles. Okay. Thank you, Sir. *Mayroon din po kayong binanggit doon sa certification ninyo, iyong "Information, Education Campaign" or "IEC". Ano po itong "IEC"?*

Mr. Boransing. So, the "Information, Education, and Communication" campaign, Sir, is, it involves informing the communities and the other stakeholders on the Army programs, government programs, and the threat that is in the community, Sir.

Mr. Robles. Okay, Sir. *Iyon pong IEC campaign activities ninyo, Sir, sino po ang nagpopondo?*

Mr. Boransing. Again, Sir, it's an inter-agency effort, Sir. We have Army funds, but we coordinate with the Philippine Information Agency, the local governments, and other national government agencies, Sir, for printing of tarpaulins, handouts, and for AVPs or audio-visual presentations, Sir.

Mr. Robles. So, Sir, normally *'pag ganyang multi-party activity, mayroon pong lead. Sino po iyong lead dito sa IEC activities na ito?*

Mr. Boransing. It's case-to-case basis, Sir. Like, for instance, Sir, last year, Sir, or in 2023, there were some briefings about the threat of terrorism in Lanao del Sur and the Zamboanga Peninsula. So, if the target audience is the school, Sir, it will be the school, but many stakeholders will be presenting during the forum, Sir.

Mr. Robles. *Tama ho. Pero sino ho ang nag-i-initiate noong project? Is this a project of the Philippine Army?*

Mr. Boransing. It is case-to-case basis, Sir. Sometimes the school or the community requests for it; sometimes it is the Army, sometimes it is the LGU, Sir.

Mr. Robles. *Sige po. Doon po sa kaso na it is the Philippine Army which is taking the lead, sino po ang nag—kailan po pine-prepare iyong pondo?*

Mr. Boransing. Again, Sir, we follow the budget process of the government. So, it is one year before, Sir.

Mr. Robles. So, *ganoon din po, one year before bago iyong actual holding?*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Sino po ang nagdedesisyon kung kailan at saan gaganapin?*

Mr. Bacquel. Objection, Your Honor, compound, Your Honor.

Mr. Robles. *Sige, Your Honor, I will reform.*

The Presiding Officer. Kindly reform, Counsel.

Mr. Robles. *Sino po ang nagdedesisyon kung saan gaganapin iyong IEC activity?*

Mr. Boransing. The IEC activities, again, Sir, we coordinate with the local government units for their offices and the communities; with DepEd, if the schools are the ones to be delivered for Information, Education, Communication campaign, Sir. So, it depends, Sir, on the specific area and circumstances, Sir.

Mr. Robles. *Pero sabi n'yo po kasama ito sa budget process din. Tama po?*

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Robles. Your Honor, I am asking him to confirm. I have a follow-up question.

The Presiding Officer. Overruled. Witness may answer.

Mr. Boransing. Yes, Sir. At least for the Army-funded materials, Sir, and coordination part, Sir, it is the Army, Sir, that decides. So, it is like, for instance, Sir, if the threat is to the whole province, then it is the whole province, Sir.

Mr. Robles. So, *kailan po isina-submit iyang proposal* for your IEC activities?

Mr. Boransing. Again, Sir, we follow the government budget process, Sir. It is a year before, Sir.

Mr. Robles. The year before?

Mr. Boransing. Yes, Sir.

Mr. Robles. *Ngayon punta po tayo doon sa pagtestigo n'yo sa Committee on Good Government and Public Accountability noong October 17, 2024.*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Puwede po bang mabanggit n'yo kung ano iyang naging pag-uusap doon sa hearing na iyon?*

Mr. Bacquel. Vague, Your Honor.

Mr. Robles. Your Honor, let the witness recall.

The Presiding Officer. Witness may answer. I think he knows what he is being asked, given that he testified earlier—he recalls the hearing and having attended the hearing. Witness may answer. Objection overruled.

Mr. Boransing. It is kind of a very long hearing, Sir, I cannot specify. Maybe you can ask a specific question.

Mr. Robles. Okay. What I will do, Sir, is I will show you a specific portion because I have questions relating thereto.

Mr. Boransing. Yes, Sir.

Mr. Robles. And then I will ask my questions so that you will recall what transpired.

Mr. Boransing. Yes, Sir.

Mr. Robles. Is that fair?

Mr. Boransing. It is, Sir.

Mr. Robles. Thank you.

Your Honor, at this juncture, may we request to refresh the memory of the witness that we be allowed to play the video contained in the USB previously marked as Exhibit P-I-1-c-i for the Prosecution. This is part of the videos for which the Honorable Court has graciously extended judicial notice.

The Presiding Officer. How long is the video, Counsel?

Mr. Robles. Your Honor, about four minutes and 30 seconds.

The Presiding Officer. In all?

Mr. Robles. We are specifically requesting for the playing of Exhibit P-I-1-5 or part five starting from 39 minutes, 34 seconds to 44 minutes and seven seconds.

Technical, can we play the video? Video number one.

The Presiding Officer. The Clerk of Court, through the tech, is authorized to so play the video.

[Video Presentation]

Mr. Robles. Your Honor, can we proceed with our examination of the witness? I'll ask him—

The Presiding Officer. Yes, Counsel. You may proceed.

Mr. Robles. Thank you.



Colonel, just to clarify, *noon po bang tumestigo kayo*, was it under oath?

Mr. Boransing. It was.

Mr. Robles. ... And do you confirm the veracity of the statements you made in that hearing?

Mr. Boransing. Yes, Sir.

Mr. Robles. Okay, thank you. *Puntahan po natin iyong pinag-usapan doon sa video, iyon pong funding. Doon po ba sa certification n'yo, aling YLS at IEC activities ang binabanggit n'yo?*

Mr. Boransing. I don't get the question, Sir.

Mr. Robles. Is it for a specific period or in general?

Mr. Boransing. I don't get the question, Sir.

Mr. Robles. *Ano pong panahon ang covered noong certification n'yo?*

Mr. Boransing. It was stated in the certification, Sir, January 1 to December 31, 2023, Sir.

Mr. Robles. *Iyon po ang pag-usapan natin ...*

Mr. Boransing. Yes, Sir.

Mr. Robles. ... *iyong YLS at IEC activities n'yo, ng unit n'yo, noong 2023. Para maliwanag, saan po nanggaling iyong funding para doon sa YLS at IEC activities n'yo noong 2023?*

Mr. Bacquel. Objection, Your Honor. Asked and answered.

Mr. Robles. No, Your Honor. This is a different question. The witness was answering before about activities in general. I am asking for a specific period covered.

The Presiding Officer. We will allow it. Witness may answer.

Mr. Boransing. Yes, Sir. For the 2023 Youth Leadership Summit, Sir, the funding for the whole activity itself came from various government agencies, Sir. So, for the army participants and for the coordination, it was—for the Army participants, it was from the Army, in the budget of the Army. For the students and out-of-school youth participants, it was funded from the provincial, city, or municipal local government funds. For the other participants from other agencies or civilian stakeholders, it was from their own funding.

Mr. Robles. *Kaniya-kaniyang bayad? Kaniya-kaniya?*

Mr. Boransing. Yes, Sir.

Mr. Robles. So, *ang sunod ko pong question, nasagot n'yo na, kung kanino galing iyong pondo para doon sa participants. Ang sabi n'yo, local government units, 'no?*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Ito po iyong tanong ko: Gaano po kalaki ang funding by way of confidential funds na ipinrovide (provide) ng DepEd para sa YLS at IEC activities n'yo noong 2023?*

Mr. Boransing. There was no funding released to the 1st Infantry Division from DepEd, Sir, of any source, Sir.

Mr. Robles. How about funding by way of confidential funds provided by the offices identified with the Respondent Vice President Sara Duterte, particularly the OVP (Office of the Vice President), or the Vice President Security and Protection Group or VPSPG? Were there funding provided from those offices for your YLS and IEC activities in 2023?

Mr. Boransing. For 2023, Sir, there were no funds from other—any government agency released to the 1st Infantry (Tabak) Division, Sir.

Mr. Robles. I was asking you about confidential funds. Now, let me ask you about funds in general, confidential or otherwise. How much funding was provided or downloaded to your unit by the DepEd for your conduct of the YLS and IEC activities in 2023?

Mr. Boransing. As I earlier said, Sir, no funds whatsoever or any amount was downloaded to the 1st Infantry (Tabak) Division for 2023 for the Youth Leadership Summit and Information, Education, Communication campaign, Sir, by any government agency, Sir.

Mr. Robles. Okay. *Doon po sa—para lang malinawag, itatanong ko na rin po sa inyo,* although in general *nasagot n'yo na rin, 'no.* How much funding other than confidential funds was provided or downloaded to your unit by the offices identified with the Respondent Vice President, like the OVP or VPSPG, for your conduct of the YLS and IEC activities in 2023?

Mr. Bacquel. Objection, Your Honor. Asked and answered.

Mr. Robles. It's a different question, Your Honor.

The Presiding Officer. Asked and answered, Counsel. Objection is sustained. Move on, Counsel.

Mr. Robles. Sir, referring to the YLS and IEC activities you conducted in 2023, who decided when and where to conduct those—where to conduct those activities?

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Robles. Your Honor—

The Presiding Officer. I'll allow it, Counsel. I don't recall witness having answered that.

Mr. Boransing. Yes, Sir.

So, it is the Inter-Agency Technical Working Group, Sir, that decides a specific, but it has already been programed for, like, for instance, a single province, Sir, but a specific municipality will be decided by the Inter-Agency Technical Working Group composed—

Mr. Robles. But, as you said, it's already been programed, correct?

Mr. Boransing. Yes, Sir. But for the specific *barangay, sitio*, it's not written there; it's written, like, for instance, the province, Sir, or the municipality, Sir.

Mr. Robles. So, as you stated earlier, is this part of the budget process you mentioned earlier to be submitted one year before?

Mr. Boransing. Yes, Sir, at least for the Army's participation, Sir.

Mr. Robles. Okay. Thank you.

The Presiding Officer. With your indulgence, Counsel.

When did the inter-agency committee decide on the venue of the YLS and the IEC?

Mr. Boransing. Yes, Sir. Good morning, Sir.

The Presiding Officer. *Sabi n'yo, Sir, kasi iyong AFP nag-decide a year before, pero wala pang specific barangay,* and that the areas are chosen by the inter-agency committee.

Mr. Boransing. Yes, Sir.

The Presiding Officer. When did the inter-agency committee decide *kung saan gagawin iyong YLS at IEC ng 2023?*

Mr. Boransing. For—let me—in way of answering, Sir, if I may, Sir...

The Presiding Officer. Please, Sir.

Mr. Boransing. ...show a specific example, Sir.

So, like, for instance, Sir, in Lanao del Sur, Sir, there was a Youth Leadership Summit there conducted December 2023. Sir. So, a few months before, Sir, an inter-agency meeting was initiated by the 103rd Infantry Brigade in Marawi City, Sir. And then they looked at the threat levels, where those killed—terrorists killed or surrendered or captured where—which specific municipalities are they coming from.

The Presiding Officer. What date was this agreed upon, and when was the YLS?

Mr. Boransing. If I could—

The Presiding Officer. This example you are citing, Sir.

Mr. Boransing. Yes, Sir.

The Presiding Officer. You can—you may refer to your notes, Sir. You may refer to your notes. Just to give us an idea.

Ano po iyong binabanggit n'yo sa Marawi, kailan ginawa, at saka kailan pinagpasyahan iyon?

Mr. Boransing. So, this one, Sir, in Lanao del Sur, Sir, it was on August 7 to 9, 2023, and the specific venue is Barangay Poblacion Madaya, Maguing, Lanao del Sur. So, we have here a preparation phase, Sir, which was done July 15, when they met with the president of—we have an organized alumni of Youth Leadership Summit at—they met in Campo Ranao, Sir, with the Army officers, Sir, and the topic discussed was the preparation for the requirements of the YLS Summit, Sir. So—

The Presiding Officer. So, the month before, Sir?

Mr. Boransing. Yes, Sir. It depends on the specific circumstances of the area, Sir. It could be a month; it could be two months before, Sir.

The Presiding Officer. You're talking nine YLS activities in 2023, correct, Sir?

Mr. Boransing. Eight, Sir.

The Presiding Officer. Eight?

Mr. Boransing. Yes, Sir.

The Presiding Officer. Your letter to Usec—the letter of General Bajao to Usec Mempin mentions nine, so it's only eight?

Mr. Boransing. Your Honor, that is a different area for General Bajao.

The Presiding Officer. Ah, so eight? You conducted eight?

Mr. Boransing. Yes, Sir.

The Presiding Officer. So, all eight, *may pre—mayroon kayong* agreement with the inter-agencies—with an inter-agency committee. *Kasama ba ang DepEd doon?*

Mr. Boransing. Yes, Sir.

The Presiding Officer. *Sa* inter-agency committee?

Mr. Boransing. Yes, Sir.

The Presiding Officer. Okay.

Your witness, Counsel.

Mr. Robles. Thank you, Your Honor.

Balik po tayo doon sa naging hearing noong October 17, 2024, sa Committee on Good Government and Public Accountability. Naalala n'yo po tinanong kayo doon sa certification na in-issue n'yo, iyong pinakita natin kanina?

Mr. Boransing. Yes, Sir.

Mr. Robles. In fairness, so that I can ask my question, and *marami po kasi naging tanong doon*, I will show you the video before asking you questions.

Your Honor, can we play—can we be allowed to play Exhibit P-I-1-6? This is part six of the video, to which the Honorable Court has already extended judicial notice, starting from 27 minutes, 21 seconds to 31 minutes and nine seconds, which is around a three- or four-minute video.

The Presiding Officer. You may proceed, Counsel.

Mr. Robles. Thank you.

The Presiding Officer. The tech is so instructed to comply.

Mr. Robles. Technical, kindly play video No. 4.

[Audio-Visual Presentation]

Mr. Robles. Colonel, I would like to ask you about what you said about the certification you issued.

Mr. Boransing. Yes, Sir.

Mr. Robles. You were asked, Sir, why you issued the certification. And just to recapitulate or restate, you said essentially that the certificate was issued as a form or a certificate of attendance to stakeholders who participated in the activities. And you even cited the fact that you also requested for a similar certificate of attendance from the committee secretary. Would that, more or less, be a correct restatement of what you said?

Mr. Boransing. Yes, Sir.

Mr. Robles. Okay. So, do you affirm that answer before this Court that you gave?

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Robles. No, Your Honor, it's a different question.

The Presiding Officer. He did answer that in the video, but does he confirm it today?

Mr. Robles. Do you confirm that, Sir?

The Presiding Officer. You may answer, Colonel Boransing.

Mr. Robles. The truth and veracity of that statement?

Mr. Boransing. Yes, Sir.

Mr. Robles. Okay. Now, based on the record, as already also stated in the video, the certificate you issued, Sir, was used by the DepEd and submitted to the COA for the purpose of showing proof of success of information-gathering or surveillance activity to justify the payment of P15.54 million in confidential funds as rewards.

Mr. Bacquel. Objection, Your Honor.

Mr. Robles. Your Honor, I haven't asked my question.

The Presiding Officer. Finish your question, Counsel.

Mr. Robles. When was the first time that you learned about this?

The Presiding Officer. What's the objection, Counsel?

Mr. Bacquel. I withdraw my objection, Your Honor. The Prosecution changed its question.

The Presiding Officer. If he knows. The witness may answer, if he knows.

Mr. Boransing. Yes, Sir. Made aware of what specific part...

Mr. Robles. *Kailan n'yo po nalaman na ginamit iyong certification na in-issue n'yo para ipasa o ilusot sa COA iyong P15.54 million na confidential funds na ipinambayad umano ng rewards ng Department of Education? Kailan n'yo po nalaman?*

Mr. Bacquel. No basis, Your Honor.

Mr. Robles. That is part of the record already.

Mr. Bacquel. The witness has yet to testify as regards any submission of any document to the COA.

The Presiding Officer. Neither have I heard that, Counsel.

Mr. Robles. *Sige po.*

The Presiding Officer. But with the indulgence of the Counsel for the parties, I noticed that the certifications are all common exhibits of both parties.

Mr. Robles. Yes, Your Honor.

The Presiding Officer. There is no request for stipulation on the part of the Prosecution insofar as the certifications are concerned. Is that correct?

Mr. Robles. Yes, Your Honor, but these have been previously testified on already by the COA witnesses, Your Honor, particularly, Mr. Wamil.

The Presiding Officer. Agreed, Counsel. Agreed, Counsel. All I'm asking is if there are—

Mr. Robles. So, there is basis for us to confront the witness because that is part of the record already, Your Honor.

The Presiding Officer. That is not the issue of the Presiding Officer, Counsel. I'm looking at the possibility of shortening the proceedings, if indeed these are common exhibits insofar as I can enumerate all of the certifications...

Mr. Robles. We submit, Your Honor.

The Presiding Officer. ...if the Respondent is willing to stipulate on the certifications, including the AOMs and the DepEd response. If the Respondent is willing. If not, then we proceed as you intend to, Attorney Rey.

Attorney Lindon, are you willing to stipulate as to the common exhibits pertaining to the COA AOMs on DepEd, the responses and transmittal letters of DepEd, and the certifications issued, among others, by Colonel Boransing and others, pertaining to YLS and IECs? Is that possible?

Mr. Bacquel. We can stipulate on that, Your Honor.

The Presiding Officer. I will enumerate, Counsel, then.

The COA AOM dated 2024-015 dated February 1, 2024; COA AOM No. 2024-171 dated August 8, 2024. Do you stipulate, Counsel?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. DepEd reply dated April 17 to AOM No. 2024-2015. Do you stipulate, Counsel?

Mr. Bacquel. Yes, Your Honor. For the record, that's Defense Exhibits D-I-79-DE, Your Honor.

The Presiding Officer. Yes. The transmittal letter of DepEd response to AOM No. 2024-171. If I'm not mistaken, that's D-I-92-DE.

Mr. Bacquel. Correct, Your Honor.

The Presiding Officer. Do you stipulate, Counsel?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. The certifications issued by various officers of the Armed Forces of the Philippines coming from Colonel Boransing dated January 1, 2024; Colonel Sangdaan dated December 30, 2023; by Lt. Col. Magtangol Panopio dated December 5, 2023; the certification issued by Lieutenant Colonel Mendoza dated September 25, 2023; by Lt. Col. Jaicris Jan Mendoza dated December 10, 2023; and certification by General Bajao dated December 12, 2023; and, finally, by Col. Darren Comia dated July 1, 2024.

I can name the exhibits in *seriatim* too, Counsel, if you want.



Mr. Bacquel. We can stipulate, Your Honor. In addition, Your Honor, for the record, in D-I-92-DE, it is a transmittal letter of a reply dated August 22, 2024.

The Presiding Officer. Yes. Not dated August 27?

Mr. Bacquel. August 22, Your Honor.

The Presiding Officer. August 22.

Mr. Bacquel. Which is attached to D-I-92-DE, Your Honor.

The Presiding Officer. This is the one signed by Usec. Sevilla?

Mr. Bacquel. That's the D-I-92-DE, Your Honor.

The Presiding Officer. Yes.

Mr. Bacquel. The reply dated August 22, 2024, which is attached to D-I-92-DE, is separately marked as D-I-93-DE, Your Honor.

The Presiding Officer. Yes. And do you stipulate as well with that?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. Finally, the letter addressed by Major General Bajao to Usec. Mempin, which is your D-I-84-DE and D-I-85-DE.

Mr. Bacquel. We can stipulate on that, Your Honor.

Moreover, Your Honor, may we also request stipulation on the data on Joint 7ID DepEd Anti-Insurgency Campaign from 01 January 2023 to 31 December 2023?

The Presiding Officer. Dated December 5, 2023?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. Which is Prosecution's Exhibit P-I-22-c-1. Do you stipulate, Attorney Rey?

Mr. Robles. Your Honor, let me check. P-I—

The Presiding Officer. P-I-22-c-1. Data on Joint 7ID DepEd Anti-Insurgency Campaign from January 1, 2023 to December 31, 2023 dated December 5, 2023, signed by Maj. Rogelio Dumrigue, Jr. and Lt. Col. Magtangol Panopio.

Mr. Robles. We are willing to stipulate, Your Honor.

The Presiding Officer. So stipulated.

Mr. Bacquel. Yes, Your Honor. For the record, Your Honor, that document is Defense's Exhibit D-I-83-DE, Your Honor.

Mr. Robles. This is a common exhibit, Your Honor.

The Presiding Officer. Yes. So, stipulated. The aforementioned documents are so stipulated to by the parties, meaning to say, no proof need be presented in regard to these documents other than to complete the narration of the witness.

So, ordered.

Mr. Robles. Thank you, Your Honor.

Dito po sa mga dokumento na ngayon lamang po pinagkasunduan ng Prosecution at Counsel for the Respondent, isa po dito iyong sulat na isinumite ng DepEd sa COA bilang tugon sa Audit Observation Memo 2024-05. Ito po ay sulat dated 17 April 2024, naka-address kay Hon. Nilda B. Plaras ng COA at pirmado po ni Atty. Michael Wesley T. Poa, Undersecretary and Chief of Staff.

Ang tanong ko po, kailan n'yo po nalaman na inilakip o isinama sa sulat na ito iyong certification na in-issue n'yo para patunayan daw na iyong aktibidad na sine-sertifayan (certify)

n'yo ay patunay ng pag—matagumpay na paggastos or pagbigay ng reward para sa surveillance activity and information gathering ng DepEd para sa halagang P15,540,000? Kailan n'yo po nalaman iyon?

Mr. Bacquel. Your Honor, before the witness answers, Your Honor, can the witness be directed not to—during the examination, not to confer with other people or his staff, Your Honor, seated behind.

The Presiding Officer. Conferring with the—

Mr. Robles. Which witness?

Mr. Bacquel. This witness.

The Presiding Officer. Who are you conferring with, Colonel Boransing?

Mr. Boransing. He's our Army lawyer, sir. I was just asking about the stipulation, explanation ...

The Presiding Officer. Kindly avoid that, Colonel Boransing.

Mr. Boransing. Yes, Sir.

The Presiding Officer. As earlier ordered by the Chair, while you are testifying, you are not to consult or get any coaching from anyone, whether it's a party in interest and/or the Counsels for either party. We will, as best as we can, Colonel, we will look out—the Court will look out for your rights and interests and will so invoke it—you may invoke it anytime you need to, or the Court may do so should the parties fail to invoke it for you.

You may proceed, Counsel.

Mr. Bacquel. Thank you, Your Honor.

The Presiding Officer. It's so ordered. Thank you for that, Attorney Lindon.

Mr. Bacquel. We also object to the question, Your Honor, for being compound and vague, Your Honor.

The Presiding Officer. Now, I forgot the question already. Kindly repeat the question, Attorney Rey.

Mr. Robles. *Base po dito sa dokumento*, which were already subject to stipulation by the parties, *pinagkasunduan na po—*

The Presiding Officer. I remember. If you know—Overruled.

If you know, Colonel Boransing, if you know that that document was used or was submitted to COA in relation to an AOM. If you know.

Mr. Boransing. Yes, Your Honor. The question was when I knew—

Mr. Robles. *Kailan mo unang nalaman?*

Mr. Boransing. October 17, 2023, during the hearing in the Lower House.

Mr. Robles. *Iyon lamang po noong mismong hearing na iyon?*

Mr. Boransing. Yes, Sir.

Mr. Robles. Okay. So, *ang tanong ko po, kasama po ba iyang ginawang paggamit ng DepEd doon sa purpose ng pag-issue ninyo ng certification?*

Mr. Boransing. We could—I'd like to clarify the question, Sir.

Mr. Robles. *Sige po. Palitan ko na lang iyang tanong. Ano po ang kaugnayan noong certification na in-issue ninyo doon sa umano'y matagumpay na paggastos ng P15.54 million confidential funds ng DepEd para umano sa pagbahayad ng rewards?*

Mr. Bacquel. Objection, Your Honor; no basis.

Mr. Robles. Your Honor.

The Presiding Officer. If the witness knows, Counsel.

Mr. Boransing. I have no knowledge, Sir.

The Presiding Officer. I would have expected that.

Mr. Robles. *Wala kayong kaalaman po?*

Mr. Boransing. Yes, Sir. I haven't even read the COA document, Sir.

Mr. Robles. *Hindi n'yo po nakita iyong COA document?*

Mr. Boransing. No, Sir.

Mr. Robles. *Noong malaman n'yo po na ginamit iyong certification ninyo para doon sa pagki-clear ng confidential funds na dinis-allow (disallow) ng COA, could you tell us ano po iyong naging reaksiyon ninyo?*

Mr. Bacquel. Objection, Your Honor, misleading.

The Presiding Officer. Objection is sustained, Counsel.

Mr. Robles. Your Honor, there is nothing misleading with the question. I'm just asking for the reaction of the witness when he learned.

The Presiding Officer. Counsel, I don't believe this was disallowed by COA, Counsel. There is no evidence to that effect.

Mr. Robles. I'm sorry, I'll reform. So, *iyon pong—noon pong nalaman ninyo na ginamit iyong certification ninyo para sagutin iyong pagpa-flag ng COA doon sa audit observation nila doon sa P15,540,000 na ginastos umano sa paghahayad ng reward, ano po iyong naging reaksiyon ninyo?*

Mr. Boransing. Frankly, Sir, I did not have any reaction, Sir, because we conducted the Youth Leadership Summit, in coordination and with the help of all the stakeholders, Sir. And we had our own problems in our area of operations 2023. During that time, we just had the bombing in Marawi City. So frankly speaking, we had more—at least for us, more important things to uh—

Mr. Robles. *Okay lang po ba iyon sa inyo?*

Mr. Bacquel. Argumentative, Your Honor.

Mr. Robles. Anyway—

The Presiding Officer. Move on, Counsel.

Mr. Robles. What explanation did DepEd officials—*Naalala n'yo po kung ano iyong paliwanag ng DepEd officials, iyong binigay nila doon sa hearing kung saan kayo nag-attend doon sa issue na ito?*

Mr. Bacquel. Call for hearsay, Your Honor.

Mr. Robles. Well, anyway, we will just confront the witness with the video.

The Presiding Officer. You may do so, Counsel.

Mr. Robles. Thank you, Your Honor.

We request that we play, Your Honor, Exhibit P-I-1-6, part 6, starting at 17 minutes, 43 seconds to 27 minutes, 16 seconds.

Technical, can we play video No. 2?

The Presiding Officer. Tech is so directed.

[Video presentation]



Mr. Robles. Your Honor, can I request the technical to pause because I have a question or two for the witness?

The Presiding Officer. You may proceed, Counsel.

Mr. Robles. Thank you, Your Honor.

Colonel, *narinig n'yo po 'yung usapan doon sa naging hearing?*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Ang tanong ko lang po, in your case, sino po ang humingi noong certification?*

Mr. Boransing. I was directed by our then-commander of the 1st Infantry Tabak Division, Major General Viray, to draft a certification. He was called by Undersecretary Mempin, Sir.

Mr. Robles. So, more or less, *tama po 'yung pinag-usapan dito?*

Mr. Boransing. Yes, Sir.

Mr. Robles. It is according to what you experienced. *Ganoon po?*

Mr. Boransing. Yes, Sir.

Mr. Robles. Okay. So, can we proceed with the playing of the video?

The Presiding Officer. How many more minutes is that, Counsel?

Mr. Robles. About three or four minutes, Your Honor.

The Presiding Officer. Proceed.

[Video presentation]

The Presiding Officer. Counsel, can you already pause it here? Attorney Rey.

Mr. Robles. Your Honor, just one minute more, Your Honor.

The Presiding Officer. This is already Congressman Acop speaking.

Mr. Robles. Yes, Your Honor. There was an answer. I don't want to end it here because, if I remember, there is a response from Usec. Poa and I don't want to cut it here because *baka sabihin po nila pinuputol ko 'yung sagot niya.*

The Presiding Officer. *Mag-o-object na nga si Attorney Lindon.*

Mr. Robles. Anyway, Your Honor, I can end it here.

The Presiding Officer. End it here, Counsel. You can present this part when you call or after you call Attorney Poa, if you want.

Mr. Robles. Well, Your Honor, I don't know what the objection of Counsel would be, but we can address it because the only reason that these are not accepted as proof of the truth is if the Respondent will have no opportunity to present the witness to correct, Your Honor. These are senior personnel of the DepEd. They are senior aides of—and they were making public statements under oath, Your Honor.

The Presiding Officer. Yes, Counsel, but we are dealing with Colonel Boransing here.

Mr. Robles. Anyway, we submit, Your Honor.

The Presiding Officer. He has no relation anymore to the statements of Congressman—the late Congressman Acop.

Mr. Robles. I was just going to ask him, in relation to the explanation given by DepEd, in relation to the certification he issued, Your Honor.

The Presiding Officer. You may proceed, Counsel. I think he has heard enough in relation to that.

Mr. Robles. Thank you. *Sige po. Ang pagkaka—kung napanood n'yo po, Colonel, ang paliwanag po noong Usec ng DepEd na sinasabi niya na hiningan daw po sila ng certification. Hiningan—nagkaroon ng AOM, hiningan sila ng proof ng success noong paggastos nila ng reward at naisip daw niya, 'yung certification n'yo kasi nakalagay doon na may coordination sa DepEd, baka daw po sakaling nagamit iyon at iyon ang naging—nabigay sa iyo 'yung information dahil sa kanilang confidential operation, at iyon ang dahilan kung bakit niya in-attach 'yung certification doon sa sagot sa AOM.*

Mr. Bacquel. Your Honor, can the Prosecution be directed to just ask the question?

The Presiding Officer. Kindly simplify the question, Counsel.

Mr. Robles. Yes, Your Honor.

The Presiding Officer. I know where you're getting at. Ask the question directly.

Mr. Robles. *Sige po. I'll just—Okay. Let me just ask a few preliminary questions before I ask our ultimate question, Your Honor.*

Colonel, para lang po sa kaalaman ng lahat, tanong ko lang po, ano po 'yung area ng operations ng 1st Infantry Division?

Mr. Boransing. Currently, Sir, or 2023, Sir?

Mr. Robles. *Iyon pong 2023.*

Mr. Boransing. Yes, Sir. The area of operation of the 1st Infantry Division during 2023 are the provinces of Lanao del Norte, Lanao del Sur, Zamboanga del Sur, Zamboanga del Norte, Zamboanga Sibugay, Misamis Occidental, and parts of Misamis Oriental, Sir.

Mr. Robles. *Okay po. Gaano na po kayo katagal, 'yung unit n'yo, na naka-assign diyan sa—I understand that's called Zamboanga Peninsula?*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Gaano po katagal na kayong naka-station diyan, 'yung unit n'yo?*

Mr. Boransing. I couldn't—I have to look at the historical records, Sir, for the specific date.

Mr. Robles. Estimate.

Mr. Boransing. But I think the 1st Infantry Division transferred there after, I think late '70s or early '80s, Sir.

Mr. Robles. So, *dekada na po.*

Mr. Boransing. Yes, Sir.

Mr. Robles. *Tama po ba?*

Mr. Boransing. Yes, Sir.

Mr. Robles. So, *siguro kung late '70s or '80s, mga 50 years?*

Mr. Boransing. 2026—more or so, Sir.

Mr. Robles. So, you have been embedded there for 50 years. *Ang tanong ko po, kung mayroon pong ahensiya ng gobyerno na magko-conduct ng intelligence or confidential information sa area of operations n'yo, ano po ba 'yung karaniwang SOP?*

Mr. Boransing. May I clarify, Sir, the SOP of the Army or the Police or—

Mr. Robles. *Ano po 'yung SOP na ginagawa ng mga ahensiya ng gobyerno 'pag sila ay magko-conduct ng intelligence or confidential information sa area ng kagaya n'yong Army unit?*

Mr. Bacquel. Objection, Your Honor. Speculative, incompetent.

Mr. Robles. No, Your Honor. I'm just asking about the standard operating procedure, Your Honor.

Mr. Bacquel. Your Honor...

Mr. Robles. The witness is supposed to know, Your Honor.

Mr. Bacquel. ...the Prosecution is asking the SOP of other agencies, Your Honor.

Mr. Robles. No, I'm asking the supposed SOP for this, Your Honor.

Mr. Bacquel. Of other agencies, Your Honor.

The Presiding Officer. What are you leading at, Counsel? Still in relation to the document being submitted as part of DepEd's liquidation?

Mr. Robles. Yes, Your Honor. In relation to the explanation given by the DepEd during the hearing on 17 October 2024.

The Presiding Officer. With the indulgence of Counsels.

Colonel Boransing, *isinumite po ng DepEd bilang bahagi ng sagot nila sa AOM 'yung certification na pinirmahan po ninyo, maliban doon sa ibang certifications na ini-stipulate kanina, bilang patunay na naging matagumpay 'yung kanilang confidential operations. Una, nalalaman n'yo po ba iyon?*

Mr. Boransing. No, Sir. I am not the intelligence officer, Sir, so I am not privy to any intelligence officer, Sir.

The Presiding Officer. *Pangalawa, binanggit n'yo po kanina na walang ibinigay o wala kayong tinanggap na pera mula sa DepEd. Wala ring ibinigay na pera ang DepEd sa AFP o sa 1st Tabak o sa unit n'yo. Tama po ba?*

Mr. Boransing. Yes, Sir.

The Presiding Officer. But would you know if DepEd spent on that activity on their own people because you collaborated with DepEd on that activity? Would you know? *Sabi n'yo kanina kasi KKB.*

Mr. Boransing. Yes, Sir. What I know is they arrived there. They were there during the youth leadership summits and traveling. As I know, in the government, entails expenses and permission to leave the post, Sir.

The Presiding Officer. *Alam n'yo ba na confidential funds ang ginastos para doon sa expenses na iyon o hindi po?*

Mr. Boransing. I have no knowledge about the source of funds, Sir.

The Presiding Officer. So, you can confirm that no money was given to the AFP or any of its units or anyone in your unit, but that DepEd must have spent money on the activities.

Mr. Boransing. I can only speak for the 1st Infantry Tabak Division, Philippine Army, Sir. No funds were downloaded to our specific unit, Sir.

The Presiding Officer. But it is very possible that DepEd spent on the YLS and the IECs.

Mr. Boransing. Yes, Sir.

The Presiding Officer. Final question. Did you spend intelligence or confidential funds for these activities on the part of the AFP? Or was this part of your regular programing, as you said earlier, chargeable against your regular budget?

Mr. Boransing. It is part of the regular budget, Sir. But if I may explain, Sir, so that the—

The Presiding Officer. You may, Sir.

Mr. Boransing. Yes, Sir. The conduct of the Youth Leadership Summit is part of a campaign, Sir. So, it involves civil-military operations, combat operations, and intelligence operations. Although I cannot comment about the intelligence operations, Sir, but they are interlinked and mutually supporting. So, all army and AFP operations are intelligence-driven, Sir.

The Presiding Officer. So, it is possible that intelligence funds were spent by the AFP in regard or in relation to these activities.

Mr. Boransing. Yes, Sir.

The Presiding Officer. Your witness, Counsel.

Mr. Robles. Thank you, Your Honor.

The Presiding Officer. You may proceed from there.

Mr. Robles. *Ang tanong ko po, balikan ko lang po 'yung tanong. Hindi po ba kanina nasabi n'yo na ilang dekada na po kayo diyan sa Zamboanga Peninsula? Ang tanong ko lamang po, kung mayroong ahensiya ng gobyerno na magko-conduct ng intelligence or confidential information sa area n'yo, mayroon po bang SOP na dapat sundan?*

Mr. Bacquel. Vague, Your Honor. Vague, incompetent.

The Presiding Officer. What's your response, Attorney Rey, to the objection?

Mr. Robles. Your Honor, it is a simple question. Your Honor, if there is an SOP followed by military units.

Mr. Bacquel. Your Honor, the witness already mentioned that he is not an intelligence officer.

Mr. Robles. I am not talking about—

The Presiding Officer. If he knows, Counsel, if he knows. If he does not, then let that be his response.

Colonel Boransing, you may answer, Sir.

Mr. Boransing. Thank you, Your Honor.

I would not know, Sir, because again, Sir, I am not an intelligence officer. I am a civil-military operations officer.

Mr. Robles. *May coordination po bang ginawa 'yung DepEd noong umano ay nag-conduct sila ng intelligence or confidential information noong 2023 sa area n'yo?*

Mr. Bacquel. Leading, Your Honor.

The Presiding Officer. Reform, Counsel.

Mr. Robles. So, *mayroon po bang SOP 'pag magka-conduct ng operations sa area ng isang kagaya n'yong division ng Army?*

Mr. Bacquel. Leading, Your Honor, asked and answered.

Mr. Robles. So, what is the SOP, Sir?

The Presiding Officer. Just to get over the hump, Counsel, please reform. I know where you are getting.

Mr. Robles. What is the SOP, Sir?

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Robles. *Wala pang sagot.* Sir.

The Presiding Officer. I will allow it, Counsel. Again, just to get over this hump.

Colonel Boransing, if you know.

Mr. Boransing. Thank you, Your Honor.

I do not know, Sir. It is not my field of expertise, Sir. Again, I am an infantry operations officer and civil-military operations officer. It is a completely different field, Sir.

Mr. Robles. We submit, Sir. We will move on to another point.

The Presiding Officer. Is there a chance you will finish your direct, Counsel, before lunch?

Mr. Robles. I will try to finish, Your Honor.

The Presiding Officer. Kindly do so. Kindly try to do so. Without pressuring you, Counsel.

Mr. Robles. I have several pages, Sir.

The Presiding Officer. Please proceed.

Mr. Robles. *Ang sabi po kanina noong Usec ng DepEd kaya daw po niya isinama iyong certification ninyo doon sa kanilang sagot sa AOM ay baka daw sakali doon sa information na ipinrobayd (provide) ng DepEd ay galing sa confidential operations kaya niya ginamit iyong certification ninyo.*

Ngayon, ito po iyong tanong ko. Sino po sa DepEd or related parties ang nag-relay sa—o anong impormasyon ang ibinigay nila sa inyo patungkol doon?

Mr. Bacquel. Objection, Your Honor. The question is premised on hearsay, Your Honor.

Mr. Robles. Why it's hearsay? It's not hearsay, Your Honor. They're claiming that to be the fact, Your Honor. I'm just asking him if that is the fact, did they receive any information and from whom?

Mr. Bacquel. Hearsay, Your Honor, and misleading, Your Honor.

The Presiding Officer. Counsel, I even doubt if Colonel Boransing would understand or—let's see. Colonel Boransing, do you understand the question? Can you answer?

Mr. Boransing. I was about to ask for clarification, sir.

The Presiding Officer. That was—I would have sustained on that, Counsel. Kindly clarify your question, Counsel.

Mr. Robles. *Sino po sa DepEd ang nag-relay ng information sa inyo tungkol...*

Mr. Bacquel. Object—

The Presiding Officer. Let him finish, Counsel.

Mr. Robles. *...umano sa kanilang confidential information na nakuha nila para daw sabihan kayo kung saan at kailan dapat ninyong ganapin iyong YLS at IEC activities ninyo?*

Mr. Bacquel. Objection, Your Honor, no basis, compound, misleading.

Mr. Robles. There's basis, Your Honor, because that's the claim of—

The Presiding Officer. I would have to sustain, Counsel, for being compound. And, again, the witness might have difficulty answering the question.

Kindly simplify your question, Counsel.

Mr. Robles. I will reform the question.

Mayroon po ba kayong natanggap o sino po sa DepEd ang nagbigay ng information sa inyo tungkol sa kung saan dapat ninyo i-conduct iyong inyong YLS at IEC operations?

Mr. Bacquel. Same objection. Your Honor, no basis. Your Honor. Witness has yet been qualified to answer that question, Your Honor.

Mr. Robles. Your Honor, he is the civil military operations chief.

The Presiding Officer. With the counsel's indulgence.

Colonel Boransing, *sa pagpili po ba ng area kung saan ninyo iko-conduct ang YLS at saka IEC, mayroon bang input ang DepEd kaugnay niyan gamit ang diumano confidential information mula sa kanila o mula sa informants nila? Mayroon po ba o wala doon sa walong area?*

Mr. Boransing. Sir, in the eight areas, sir, where the youth leadership summits were conducted, sir, there were some inputs from the DepEd, sir, because some of the areas are schools,

sir, and many of the participants are students, sir. So, definitely, sir, they were involved in the planning, in the choosing of the areas, sir.

The Presiding Officer. *Sino iyong nagbigay po ng inputs? Anong level sa DepEd?*

Mr. Boransing. If I could look at my record, sir.

The Presiding Officer. You can look at your record, sir.

Let's still refer to Lanao del Sur as an example, Colonel Boransing.

Mr. Boransing. Yes, sir.

The Presiding Officer. The one you did in Marawi.

While we're waiting, Attorney Rey, kindly speak closer to the mic so that our...

Mr. Robles. Yes, Your Honor.

The Presiding Officer. ...TSN people can more accurately get your statements and words. Yes, Colonel Boransing, *sino po sa DepEd?*

Mr. Boransing. Your Honor, it's not specified here, the specific name. What's specified here is it was conducted in the municipal gymnasium of Maguing, Lanao del Sur, sir.

The Presiding Officer. Do you remember if it was a local DepEd official in the area or a national DepEd official that gave you inputs?

Mr. Boransing. It's usually the school principal, the superintendent of a particular school district, the regional officers of the DepEd, sir, that we coordinate with.

The Presiding Officer. Usually, *walang* national DepEd official?

Mr. Boransing. National, meaning, sir, from the head office, sir?

The Presiding Officer. From the central office.

Mr. Boransing. In my experience in 2023, sir, there was none, sir.

The Presiding Officer. Still speaking of your experience in 2023, would you characterize inputs given by DepEd insofar as the conduct of these YLS and IECs to be confidential in nature?

Mr. Boransing. Uhm.

The Presiding Officer. Or the product of confidential activities?

Mr. Boransing. I cannot comment on if it's a product of a confidential activity, sir, but what they provided us were more of information on the schools, specific schedules of the school year where the students may be allowed to join the Youth Leadership Summit and, of course, permission to talk with the students, sir.

The Presiding Officer. Is it possible that some confidential information was obtained and that was the product of the confidential information they obtained?

Mr. Boransing. I have no knowledge about that, sir.

The Presiding Officer. Your witness, Attorney Robles.

Mr. Robles. Thank you, Your Honor. Can I proceed now?

The Presiding Officer. You may proceed, Counsel.

Mr. Robles. Colonel, *iyon pong unit ninyo*, CMO, Civilian Military Operations unit, *kayo po iyong, sabi ninyo kanina, ang direktang nakatutok sa YLS at IEC activities. Pag nagko-conduct po kayo ng YLS at IEC activities, ano pong operations ang ginagawa noong unit ninyo para masigurado na maayos at matiwagay na maidadaos iyong activities ninyo?*

Mr. Boransing. Yes, sir. I think it's basically organizational in nature, sir—planning, implementation, after-activity reviews, and calling the subject matter experts, asking permission

from the parents and school of the youth, and then making sure that they enjoy themselves while conducting the activity.

Mr. Robles. *Mayroon po bang ibang units ng division ninyo na tumutulong para siguraduhin na maayos at mapayapang maidaos iyong inyong YLS at IEC activities?*

Mr. Bacquel. Leading, Your Honor.

Mr. Robles. *Alin pong mga units ng inyong division ang tumutulong para masiguradong mapayapa at maayos na maisagawa ang inyong YLS activities?*

Mr. Bacquel. Relevance, Your Honor.

The Presiding Officer. Witness may answer. Overruled.

Mr. Boransing. Yes, sir. Thank you, Your Honor, sir.

These youth leadership summits are usually conducted in high-threat areas because these students and out-of-school youth are usually the target of recruitment for violent extremism. And we use the whole-of-government and whole-of-society approach to prevent this. So, while conducting this, we try to find a safe place, in coordination with DepEd and other stakeholders, but, definitely, it's in an area of a higher threat level. So, while we are conducting the Youth Leadership Summit, our infantry units are conducting security operations to ensure that our participants—the activity is not attacked and, of course, the intelligence units also conduct intelligence operations, sir.

Mr. Robles. *So mayroon po pala kayong intelligence unit. Tama po?*

Mr. Boransing. Yes, sir.

Mr. Robles. *Opo. Ilan pong officers ng inyong infantry division iyong tumutulong sa intelligence operations na ginagawa ninyo para matiyak na ligtas at matagumpay na maisagawa itong YLS at IEC activities ninyo?*

Mr. Boransing. It's a case-to-case basis, sir. Like for instance, sir, if it's in Lanao del Sur, it involves a lot more troops.

Mr. Robles. *Mga—when you say a lot more troops, gaano po kadamí?*

Mr. Boransing. Well, again, sir, it depends on the specific area, sir.

Mr. Robles. *Iyon nga po, estimate?*

Mr. Boransing. Anywhere from a hundred to 200, sir. It depends on the threat level, sir.

Mr. Robles. *So, 100 to 200?*

Mr. Boransing. Yes, sir. *Opo.*

Mr. Robles. *So, hindi lang naman—tama po ba na—sabi ninyo, whole-of-government approach. So, basically, hindi lang po CMO at saka intelligence operatives ninyo, lahat din po ng sundalo ninyo are involved. Is that what you're trying to say?*

Mr. Bacquel. Leading, Your Honor.

Mr. Robles. When you say whole-of-government approach—

The Presiding Officer. Witness may answer. I will allow it. Witness may answer.

Mr. Boransing. As I earlier said, sir, an army campaign involves mutually supporting effort, sir. So, from combat operations to civil military operations and intelligence operations, sir. So, *lahat po kasama po.*

Mr. Robles. Considering what you've said, sir, in the YLS and IEC activities that you've conducted through the years, *ano po iyong naging resulta* as a result of your efforts?

Mr. Bacquel. Vague, Your Honor.

The Presiding Officer. Witness may answer. They've been doing it for over two decades.

Mr. Boransing. Yes, sir. I can only—maybe let me start with 2023, sir? It involves a certification, sir. In our area of operations specifically for the—

Mr. Robles. Colonel, let me just stop you. I'll ask you about 2023 later, 'no. But my question is, in the years that you've been conducting the YLS and IEC activities, you said that there were efforts also by CMO and intelligence. *Ano po iyong nagiging resulta noong pagtutulungan ninyo?*

Mr. Boransing. It definitely has prevented recruitment, sir, at least in my personal experience, sir. A lot of these children, youth, are usually misinformed, and this was during the time when there was no Internet yet or texting. So, sometimes we were the only representatives of the government that these—we usually have the Youth Leadership Summit in far-flung areas. And when the inter-agency technical working group goes up, it's most of the time the first time that they have seen representatives from the government, sir. So, yes, it's a big part of why the threat level all over the country has gone down, sir.

Mr. Robles. So, *ano po iyong sabi ninyo, successful po?*

Mr. Boransing. Yes, sir.

Mr. Robles. *Ngayon, ang tanong ko po sa inyo—anyway, ang tanong ko po, just an estimate, sir, ayokong tanungin iyong exact figures, gaano po kadamang tao ang strength or number of personnel ng isang division?*

Mr. Bacquel. Relevance, Your Honor.

Mr. Robles. We'll show the relevance, Your Honor.

The Presiding Officer. I'll allow it, Counsel. Kindly move on, Counsel. Witness may answer.

Mr. Boransing. Yes, sir. I think it's in—it's a public record how many soldiers we have for specific division. But more or less, 5,000, sir.

Mr. Robles. Five thousand *po?*

Mr. Boransing. Yes, sir.

Mr. Robles. So, *ito po iyong mga naging kasagutan ninyo. Mayroon po kayong around 5,000 troops in the area, estimate. Dekada na po kayong nandoon. May sarili kayong civilian military operations team. Mayroon kayong intelligence operatives, at taon-taon ginagawa ninyo na ito at sabi ninyo ngayon, successful naman. Ang tanong ko po, anong nangyari noong 2023?*

Mr. Bacquel. Vague, Your Honor.

Mr. Robles. *Bakit biglang ...*

Mr. Bacquel. Compound.

Mr. Robles. ... *kailangang gumastos ng confidential funds ang DepEd para lang masabi sa inyo*

Mr. Bacquel. No basis.

Mr. Robles. ... *kung saan ninyo dapat gawin iyong inyong YLS at IEC activities, sir?*

Mr. Bacquel. Objection, Your Honor, vague—

The Presiding Officer. Let him finish, Counsel, then I will hear your objection, Counsel.

Mr. Bacquel. Vague, misleading, no basis, Your Honor.

The Presiding Officer. And witness would be incompetent to answer if indeed, because earlier he said he is not aware if indeed DepEd spent confidential funds or not. But that DepEd spent for their participants, right, Colonel?

Mr. Boransing. Yes, sir.

Mr. Robles. That's the claim of the DepEd, sir. We're trying to ask him ...

The Presiding Officer. Again, the Presiding Officer sustained the objection on the ground that the witness is incompetent...

Mr. Robles. Thank you, Your Honor. We'll just move to another point, Your Honor.

The Presiding Officer. ...to answer on the supposed claim of the respondent.

Please proceed, Counsel. Move on.

Mr. Robles. Okay. Colonel—just right in time, I'll ask my final question, Your Honor.

Ngayon pong nalaman ninyo na kung saan po ginamit iyong certification ninyo, ginamit po sa pagsagot sa AOM ng COA para maipasa iyong pinlag (flag) na 15.54 million na pinaggamitan daw ng confidential funds at ibinayad sa rewards, kung kayo po ay hihingan ng certification ngayon, sa tingin ninyo po ba dapat ninyong in-issue iyan?

Mr. Bacquel. Argumentative, Your Honor. Speculative, argumentative.

The Presiding Officer. If it's his final question, Counsel, I will allow it. If you know. If you know, Colonel Boransing. If you can answer.

Mr. Boransing. I'd like to clarify again, sir.

Mr. Robles. Yes. Knowing what you know now that it was used for this purpose, would you have issued it if you were requested to do that?

Mr. Bacquel. Your Honor, we register continuing objection.

The Presiding Officer. Continuing objection is noted. Witness may answer in the manner he deems fit.

Mr. Boransing. Yes, sir. As I answered during the congressional hearing and you could check it in YouTube, sir, it's very speculative. It did not happen that I had prior knowledge and it's hard to speculate what I would have done. Yes, sir. So, I can't—

Mr. Robles. Anyway, that's your answer. So, thank you very much, Colonel.

Mr. Boransing. I can't answer it. Yes, sir.

Mr. Robles. Thank you very much. I think that would be all for the witness.

Thereafter, the Presiding Officer stated that the Court would have a lunch break but reminded the witness to refrain from speaking with the counsels about the testimonies made and those to be made later.

SUSPENSION OF TRIAL

With the permission of the Body, the trial was suspended.

It was 11:58 a.m.

RESUMPTION OF TRIAL

At 12:48 p.m., the trial was resumed.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Bacquel stated that the Counsel for the Respondent would not be conducting cross-examination of the witness.

The Presiding Officer then stated that the Court would be proceeding with the interventions of the Senator-Judges.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer, sir.

Colonel Boransing, *kung wala po kayong natanggap na pondo from DepEd o para sa eight Youth Leadership at sa 53 information education campaign noong 2023, eh anong pondo po o saan kayo kumuha ng budget para dito?*

Mr. Boransing. Yes, sir. Good afternoon, sir. The funds for the Army participants, sir, for coordination and other expenses of the Army participants to the Youth Leadership Summit is programmed by the Army through its budget, sir.

Senator-Judge Tulfo (E). *Pero nasa civil military operations po kayo, hindi po ba? Tama po ba ito?*

Mr. Boransing. Yes, Your Honor, sir.

Senator-Judge Tulfo (E). All right. *Wala po talagang natanggap na kahit na anong suporta, not financially, like iyong venue man lang sinagot maaari ng DepEd o pagkain o learning modules sa mga events po na ito?*

Mr. Boransing. Sir, some of the venues are schools. So, in that sense, sir, *tumulong*, and making available some of their subject matter experts, sir.

Senator-Judge Tulfo (E). Okay. *Sino po sa DepEd o any ranking officials na nag-request para mag-issue po ang office ninyo ng certification patungkol po sa YLS and IEC activities?*

Mr. Boransing. It was then Undersecretary Mempin, sir.

Senator-Judge Tulfo (E). Undersecretary ng DepEd, Mempin?

Mr. Boransing. Yes, sir. During that time, sir.

Senator-Judge Tulfo (E). *Alam mo ba iyong dokumento na pinirmahan mo ay gagamitin sa COA audit para sa liquidation ng DepEd confidential fund?*

Mr. Boransing. No, Sir. I did not know that, sir.

Senator-Judge Tulfo (E). During that time, you did not know?

Mr. Boransing. Yes, sir.

Senator-Judge Tulfo (E). But if you, *'ika nga, knew na gagamitin iyon sa ganoon, pipirma ka ba?*

Mr. Boransing. As I earlier said, it is hard to speculate, sir. As what I would have done if I had known, *since hindi naman po*, sir.

Senator-Judge Tulfo (E). I understand. *Nakatanggap po ang inyong dibisyon o sinumang opisyal sa inyong dibisyon bilang reward money o monetary incentive from DepEd regarding student profiling or anti-insurgency campaign?*

Mr. Boransing. Sir, we checked. *Wala pong na-release from any government agencies, specifically iyong DepEd. doon sa 1st Infantry Tabak Division, sir.*

Senator-Judge Tulfo (E). Okay. Last two questions. Did you clear from your higher authorities in the issuance of the certification for the DepEd's 2023 confidential fund allocation? *Ito po ba ay sinabi ho ninyo, nagpaalam kayo?*

Mr. Boransing. Yes, Sir. For the issuance of the certificate, sir, it is written there, "For the commander," sir. So, I asked the permission of our commander, sir.

Senator-Judge Tulfo (E). Who is?

Mr. Boransing. Our then commander, Sir, 2023, ah, 2024, sir, first quarter when the certificate was issued, was then retired Major General Gabriel Viray, sir.

Senator-Judge Tulfo (E). Did he ask you *para saan ito? Sinong humihingi?* Did he ask you questions like that?

Mr. Boransing. He was the one who was—He told me to issue, to write the certification, sir, for DepEd, sir. But there was no reason given, sir.

Senator-Judge Tulfo (E). Would you have any idea *na kung may mga* other civil military operations unit *sa* AFP or *sa* Army *na hiningan din ng kahalintulad na* certification *ng* DepEd during that time?

Mr. Boransing. Yes, sir. I only found out during the hearing in the Lower House in Congress, Sir, October 17, 2024, that the other officers present were also—they also issued the certificate, sir, for their unit, sir.

Senator-Judge Tulfo (E). From the different CMOs?

Mr. Boransing. From the different infantry division, sir.

Senator-Judge Tulfo (E). So, would you happen to know *ilan iyong* infantry divisions *na hiningan din ng* certifications *ng* DepEd?

Mr. Boransing. Sir, as those present during the hearing, sir, from the 5th Infantry Division, sir, Colonel Sangdaan.

Senator-Judge Tulfo (E). Okay.

Mr. Boransing. Seventh Infantry Division was Colonel Ponopio, who will be the next witness, I think; and Major General Bajao for the 9th Infantry Division, sir. I only knew because they were also present during the congressional hearing, sir.

Senator-Judge Tulfo (E). Okay. So, *mga* CMOs *lahat ito, nasa* civil-military operation unit *sila?*

Mr. Boransing. Staff, sir.

Senator-Judge Tulfo (E). Staff.

Mr. Boransing. We are the general staff, the Assistant Chief of Staff for Civil-Military Operations, G7, of infantry division, sir.

Senator-Judge Tulfo (E). Would you happen to know *kung nagbigay din sila ng* certifications *na* they did not receive any funds?

Mr. Boransing. They issued the almost the same certification, sir, because it was discussed during the congressional hearing, sir.

Senator-Judge Tulfo (E). Thank you.

I have no more questions, Presiding Officer.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po*, Presiding Officer.

Magandang hapon po, Colonel.

Mr. Boransing. Yes, Ma'am.

Senator-Judge Hontiveros. Colonel, *sabi ninyo po kanina*, Philippine Army *ang* main organizer *ng mga* youth leadership summits *at saka iyong mga* information, education, and communications campaigns. *Karaniwan nang mga gawain iyan ng* Philippine Army *sa loob na ng nakaraang mga dekada at* budget *ng* Army *at ng* LGUs *ang gamit po para doon. Tama po ba?*

Mr. Boransing. Yes, Ma'am.

Senator-Judge Hontiveros. All right. *At nagagawa ninyo po iyan, nagagawa po iyan ng* Army *kahit walang* confidential funds *na ginastos para diyan ang* DepEd. *Tama rin po ba iyon?*

Mr. Boransing. I cannot comment on that, Your Honor, Ma'am. I can only say that there were no funds released to the 1st Infantry Tabak Division in 2023 from DepEd.

Senator-Judge Hontiveros. So, no funds of whatever source, *kahit pa* confi or intel funds, at least *sa pagkaalam ninyo, ay ginastos ng DepEd para doon sa YLS at IEC campaign ng Philippine Army?*

Mr. Boransing. For the 1st Infantry Tabak Division, Philippine Army, Ma'am.

Senator-Judge Hontiveros. For your specific division?

Mr. Boransing. Yes, Ma'am.

Senator-Judge Hontiveros. Okay, Sir. And so *lumalabas po dito sa pag-present sa inyo bilang witness, na ginamit po ng DepEd ang certification ninyo bilang justification sa kung paano daw ginastos ng department ang kanilang confidential and intelligence funds. Pero kayo po mismo, Colonel, may sinabi ba kayo sa certification ninyo kung magkano diumano ang ginastos ng DepEd para doon sa activities ng Philippine Army?*

Mr. Boransing. Your Honor, there was no mention of any funds in the certification that we issued.

Senator-Judge Hontiveros. All right. So, no mention of funds, whether regular funds or confidential and intelligence funds, *ng DepEd doon sa certification ninyo?*

Mr. Boransing. Yes, Ma'am. No mention of any funds in the certification.

Senator-Judge Hontiveros. All right. *So, bilang signatory po ng inyong certification, pinapatotohanan ninyo ba na tama ang paggamit ng DepEd sa kanilang confidential and intelligence funds?*

Mr. Boransing. No, Ma'am. The certification was DepEd's and other stakeholders' participation in the youth leadership summit and the information, education, communication campaign.

Senator-Judge Hontiveros. *So, iyong certification ninyo ay purely tungkol sa participation...*

Mr. Boransing. Yes, Ma'am.

Senator-Judge Hontiveros. *...ng department at iba pang stakeholders?*

Mr. Boransing. Yes, Ma'am.

Senator-Judge Hontiveros. *Wala kayong pinatotohanan doon na gumastos sila ng pondo, whether regular o confidential and intelligence funds, para doon sa activities ng Philippine Army?*

Mr. Boransing. Yes, Ma'am.

Senator-Judge Hontiveros. And lastly, Colonel, Presiding Officer, to confirm *lang po*, Colonel, *wala po kayong nalalaman tungkol sa paano ginastos ng Department of Education ang kanilang confidential and intelligence funds dito sa YLS at IEC campaign activities ng Philippine Army. Tama po?*

Mr. Boransing. Yes, Your Honor, I do not have any personal knowledge.

Senator-Judge Hontiveros. All right. *Maraming salamat po*, Colonel.

Maraming salamat, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Thank you, Mr. President, Presiding Officer.

Colonel, *noong hiningan po kayo ng DepEd ng certification, may hiningi po ba sa inyo o mayroon ho kayong hiningi o may alam po kayo na sinabi ano ang purpose nitong certification? Bakit kailangan mag-issue ng certification?*

Mr. Boransing. Your Honor, there was no mention of the purpose of the certification, sir.

Senator-Judge Villanueva. So, when you were asked to give a certification, *ano ho iyong nasa isip ninyong gawin lang?*

Mr. Boransing. Precisely what we issued, sir. It's a certificate that the activities were conducted and the agencies in the certification did their part to make those activities successful.

Senator-Judge Villanueva. So *ang eksaktong intensyon po ninyo sa pag-issue ng certification ay para lamang sabihing may activities?*

Mr. Boransing. For them, I think, we assumed that it would be used for their attendance as we issued with the other agencies involved, sir.

Senator-Judge Villanueva. *Sabi ninyo po, for attendance. Mayroon po ba kayong—tingin ninyo, ano ho iyong limitasyon na inyong nasa isip noong ginawa po ninyo iyong inyong certification?*

Mr. Boransing. Limitation, sir?

Senator-Judge Villanueva. *Opo. Ano po iyong limitasyon ng inyong certification? Gumawa ho kayo ng certification. Ano ho iyong mga limitasyon noon? Kasi kagaya ho—inuulit ko lang po iyong tanong ko, Ma'am. Iyong—gumawa po kayo ng certification, nasa isip po ninyo, ito lang ang limitasyon niya, iyong pag-attend lang. Iyong activities na aming gagawin, hindi kasama diyan... Ano-ano ho iyong mga limitasyon na nasa isip ninyo noong ginawa ninyo iyong certification?*

Mr. Boransing. The request was for the specific agencies to be mentioned in the certificate, sir, and also the number of Youth Leadership Summits and IEC activities conducted. And that it resulted to no recruitment in our area of operation, sir.

Senator-Judge Villanueva. *So iyon lang po iyon.*

Colonel, based on your experience as AFP—as a civil military operations — *papaano ninyo po dini-distinguish ang isang regular activity, kagaya po ng YLS at IEC, from an actual intelligence gathering activity?*

Mr. Boransing. Sir, as earlier said, intelligence operations are not my field of expertise, so I cannot comment. We are an end user of intelligence from our various intelligence units.

Senator-Judge Villanueva. Thank you, sir.

So dito sa IEC at YLS, hindi po kayo kumukuha ng mga information, confidential information. Hindi po ba ito nagaganap sa mga ganitong activities?

Mr. Boransing. It is being conducted, sir. We have what we call as an intelligence preparation of the battlefield. And part of that is identification of possible recruits by violent extremist groups, and the areas are identified by our intelligence units, intelligence officer, sir.

Senator-Judge Villanueva. Again, Sir, this happens during the activities?

Mr. Boransing. Before, sir.

Senator-Judge Villanueva. Before. So, nothing during the activity?

Mr. Boransing. Nothing, sir.

Senator-Judge Villanueva. Okay. So *tama po ba na hindi porke't ang isang activity ay related to counter-insurgency ay automatic po na intelligence or confidential activity ito?*

Mr. Boransing. As I earlier said, sir, in Army operations, be it counter-insurgency, external security operations, it's all driven by intelligence. If we do not have intelligence, we'll—in Tagalog *po is parang suntok sa buwan po.*

Senator-Judge Villanueva. *Opo.*

Mr. Boransing. So, the Army and AFP always conduct operations, which is intelligence-driven *po.*

Senator-Judge Villanueva. *Opo. Pero ang pinag-uusapan lang natin dito, Colonel, iyong activities, ito pong IES at YLS?*

Mr. Boransing. Yes, sir. There are intelligence operations involved, sir, because we have to identify our target audience *po*.

Senator-Judge Villanueva. Yes. But not during the conduct of activity? Before. *Iyon ho iyong sabi ninyo kanina.*

Mr. Boransing. Yes, sir. The activity itself is leadership summit, sir, with the youth, and there are no intelligence operations when we do the specific activity.

Senator-Judge Villanueva. Yes. *Iyon po iyong gusto kong tumbukin.*

Mr. Boransing. Yes, sir.

Senator-Judge Villanueva. *Salamat po, Colonel.*

Now, *ang* AFP intelligence funds, *binabanggit ninyo po kanina, medyo—gusto ko hong i-clarify. Nagagamit po ba iyong intel funds dito sa ganitong activity, IEC at YLS?*

Mr. Boransing. Sir, it is not my field of expertise, sir. As I said, I am an end user of intelligence or information gathered by our intelligence operations.

Senator-Judge Villanueva. *Sa inyo pong pagkakaalam, nabibigyan po ba kayo ng panggastos sa ganitong uri ng aktibidades? Hindi po siguro itong mga binanggit po ninyo.*

Mr. Boransing. What is the source of fund?

Senator-Judge Villanueva. Yes. *Opo, iyong* source of fund.

Mr. Boransing. We have from the Army, sir.

Senator-Judge Villanueva. Not from the intelligence funds?

Mr. Boransing. As far as for the civil military operations *po*, we do not receive intelligence funds, sir.

Senator-Judge Villanueva. Especially in these activities? The two activities, the IEC and the YLS.

Mr. Boransing. For our part, sir, we don't receive anything.

Senator-Judge Villanueva. Sir, without disclosing classified or operational details, ordinarily *po, ano po ba ang kailangang makita para ma-establish na ang* information supplied by a particular informer actually contributed to the success of a specific information gathering or surveillance activity? *Kagaya po nito, bago ninyo gawin, ano po iyong kailangang makita para ma-establish?*

Mr. Boransing. To answer the first question *po*, Your Honor, I am not competent to answer since intelligence is not my field of expertise. What we do receive from our intelligence units is intelligence with regards to which or who among the youth which are probably going to be recruited by the violent extremist groups *po*.

Senator-Judge Villanueva. I will wind up, Mr. President.

Iyong certification na in-issue ninyo, naniniwala kayo, should not be used doon po sa ginawa na pag-support doon sa paggamit ng intelligence funds? Naniniwala po kayo?

Mr. Boransing. I do not have any opinion about that, sir. I just issued the certification, sir.

Senator-Judge Villanueva. So, would a standard certification stating only that Youth Leadership Summit or IEC was successfully conducted by itself, establish that connection between the informer, the information supplied, the successful activity, and the reward supposedly paid?

Mr. Boransing. Again, sir, I am not an intelligence officer. I cannot answer that, sir.

Senator-Judge Villanueva. Thank you.

Thank you, Your Honor. Thank you.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. Thank you very much, Presiding Officer.

Magandang hapon, Colonel.

Colonel, this is for the YLS *saka* IEC, *dito sa dalawang activities ninyo, anong klaseng confidential information ang ibinigay sa inyo ng DepEd para maisagawa itong dalawang activities?*

Mr. Boransing. Good afternoon, sir.

Your Honor, again, sir, I cannot answer, because I am not an intelligence officer.

The Senate President. *Pero may ibinigay ba ang DepEd na confidential or surveillance information in relation to these two activities sa inyo?*

Mr. Boransing. Sir, I am an infantry and civil military operations officer *po*. *Kung mayroon pong darating na intelligence, hindi po binibigay sa amin*. Whatever intelligence from other agencies or ano, it has to be processed by our intelligence units *po* before *maibigay po sa amin na end user po*.

The Senate President. *Pero kasi narinig ko kanina partner ninyo ang DepEd, hindi ba?*

Mr. Boransing. Yes, sir.

The Senate President. And this is in relation to their confidential funds. So *ang gusto kong malaman, sa pagsasagawa nitong dalawang activities, mayroon bang sinu-supply sa inyong surveillance information, confidential information, para mabuo itong dalawang activities? Sa inyo mismo*.

Mr. Boransing. For the 1st Infantry Tabak Division, no, sir.

The Senate President. *Wala silang binibigay confidential or surveillance information?*

Mr. Boransing. No, sir. What they gave are open-source information about their students, I mean, who are the potential leaders that can undergo the Youth Leadership Summit, about which school is available or good for the conduct.

The Senate President. Actually, that's my next question. *Kung wala silang binibigay confidential information, anong klaseng information ang binibigay sa inyo ng DepEd para magawa itong dalawang activities?*

Mr. Boransing. Sir, there are a very crucial part in the Youth Leadership Summit, Your Honor, although not all the target audience are in school, some or more than half are out of school youth, they are the ones who know the students. They spend more time with the students than, even us, their parents and they play a very big role in telling us who among them have the potential for leadership in the community.

Mr. Boransing. Sir, there are a very crucial part in the Youth Leadership Summit, Your Honor, since—although not all the target audience are in school, some or more than half are out of school youth, they are the ones who know the students, they spend more time with the students than—even us, their parents. And they play a very big role in telling us who among them have the potential for leadership in their community.

The Senate President. But in your professional analysis, are these considered confidential information or surveillance information?

Mr. Boransing. I am not an intelligence officer, Sir. I cannot correctly answer you. I'm not a subject matter expert on that, Sir.

The Senate President. I heard *kanina sa sagot ninyo kay Senator Joel, na kapag pumipili kayo ng lugar, you also use intelligence from the AFP. Tama po ba?*

Mr. Boransing. Yes, Sir.

The Senate President. And *sa mga huling—itong YLS ninyo at IEC, when you choose mga locations—kasi crucial iyong locations—ang gamit ninyo rin ay intelligence galing sa AFP, galing sa military?*

Mr. Boransing. Yes, Sir.

The Senate President. *Tama? And this enables you to identify ano iyong mga crucial na school, tama po ba? Ganoon ba iyong procedure ninyo?*

Mr. Boransing. Yes, Sir. And, of course, the primary criteria is the safety of the students, the youth. So, the venue, wherever it is, has to be safe from attacks and other things.

The Senate President. In your past experience—*kasi matagal na ito, narinig ko 2002—mayroon bang sinu-supply ang DepEd na confidential information, surveillance information para magsagawa ng ganitong activity, itong dalawang activity ninyo?*

Mr. Boransing. Again, Sir, I cannot answer, Sir.

The Senate President. In the past *ha*, in the past.

Mr. Boransing. Throughout my 32 years of service, I have never been an intelligence officer, Sir. So, I am not part of the intelligence structure of the AFP.

The Senate President. But in organizing these two events—in the past *ha*, this is prior to 2022, 2023—in the past, *kapag ino-organize ninyo itong YLS at saka itong IEC, may binibigay ba ang DepEd na, "Ito, confidential information, surveillance information,"* so that you would know how to organize or go about *itong dalawang activities?* In the past.

Mr. Boransing. If ever they do give any—

The Senate President. *Sa inyo po, kasi kayo iyong in charge of these activities eh.*

Mr. Boransing. The AFP intelligence units are in charge of gathering information or receiving information, Sir. It is not the civil-military operations personnel, Sir. So, I cannot fully answer your question, Sir.

The Senate President. All right. Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senate President Gatchalian.

Senator-Judge Tulfo, Raffy, is recognized. You have two minutes, Sir. You may proceed when you are ready.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Thank you, Presiding Officer.

Tanong ko muna sa Prosecution, kung puwede, my first question. Ay, puwede si ano, Luistro na lang muna?

The Presiding Officer. The Honorable Luistro is recognized, as requested by Senator-Judge Raffy Tulfo.

Representative Luistro. Good afternoon, Your Honors.

Senator-Judge Tulfo (R). Good afternoon, Cong. Luistro. *Iyong P15.5 million something na confidential funds na binigay na rewards para doon sa DepEd sa YLS, was that in the form of cash or medicine?*

Rep. Luistro. We believe, Your Honor, that that is in payment of rewards.

Senator-Judge Tulfo (R). *Kaya nga, cash or medicine? Kasi iyong sa OVP, sinabi medicine.*

Rep. Luistro. No indication, Your Honor, whether it is cash or in the form of medicine.

Senator-Judge Tulfo (R). Okay, thank you. *Iyon lang.*

Okay, Mr. Witness, is it possible *na baka iyong binigay na reward sa mga informant, sinasabi ng DepEd, ay mga operatiba ninyo rin?*

Mr. Boransing. Good afternoon, Sir. Your Honor, I would not have any knowledge about that, Sir. Again, I am not an intelligence officer, Sir.

Senator-Judge Tulfo (R). In case that happened, is it legal or illegal, *na bibili iyong DepEd ng intelligence information from your people?*

Mr. Boransing. I would not know, Sir. I'm not an expert on intelligence officer, Sir—or in the legal rules governing the gathering of information, Sir.

Senator-Judge Tulfo (R). The reason why I asked that, *kasi kung medicine ang binigay na reward money, tulad ng sa OVP, para sa intel information, tatanungin ko sana, kumusta naman iyong mga medical benefits ninyo sa military?*

Mr. Boransing. To that question, Sir—

Senator-Judge Tulfo (R). In general. In general.

Mr. Boransing. We are covered by PhilHealth, Sir. And *kung battle casualties po*, Sir, wounded, the Army has a program for it *po*. *Sagot lahat ng Army po*.

Senator-Judge Tulfo (R). *So ihig sabihin, lahat ng gamot libre?*

Mr. Boransing. If you are wounded *po*, Sir. And *kung may sakit po*, if you are sick but it is work-related *po*, job-related, Sir, *mayroon pong reimbursement po*.

Senator-Judge Tulfo (R). *'Pag hindi job-related?*

Mr. Boransing. I mean, usually, Sir, 24 hours *naman po iyong sundalo nag-aano*, so usually, *'pag magkasakit po kami*, work-related *po*, Sir.

Senator-Judge Tulfo (R). Okay, thank you.

Before 2022, *ano po ang role ng DepEd sa pagka-conduct ng youth leadership summit?*

Mr. Boransing. They are, in my experience, Sir—if I may, Sir—they are a core group of the inter-agency technical working group because, precisely, *iyong youth po iyong target audience po namin* are under their—most of the year, is under their jurisdiction of *ano po* in their schools *po*.

Senator-Judge Tulfo (R). *So iyong before 2022, iyong input ba ng DepEd sa YLS program is confidential in nature na?*

Mr. Boransing. Again, Sir, I cannot comment on that, Sir, since I am not an intelligence officer, Sir. I am not privy to those information, Sir.

Senator-Judge Tulfo (R). Okay. *Iyong pag-secure ninyo doon sa YLS, kasama na ba doon ay pag-secure ng mga VIP or pag-secure kay VP Sara kung siya ba ay a-attend? At um-attend ba siya? Um-attend ba siya sa mga YLS?*

Mr. Boransing. For the 1st Infantry Tabak Division Youth Leadership Summit for 2023 *po*, Sir, *wala po*, Sir. *Hindi po nag-attend si Vice President*, Sir.

Senator-Judge Tulfo (R). *So doon sa mga insidente na, halimbawa, siya ay uma-attend, kasama na ba doon sa trabaho ninyo na i-secure siya, kasama sa intel activities ninyo, to make sure na maging safe siya at walang pwedeng gumalaw sa kaniya at walang untoward incident na mangyari?*

Mr. Boransing. I couldn't comment on that, Sir, since *hindi po siya nakapunta doon sa youth leadership summit activity*.

Senator-Judge Tulfo (R). No, in case *na pupunta siya, at alam ninyong pupunta siya, kasama na ba doon sa trabaho ninyo na to make sure na siya ay secured at lahat ng mga estudyante na dadalo ay secured at walang mangyayaring untoward incident?*

Mr. Boransing. Sir, again, I cannot comment on that since *nasa civil-military operations po ako*. But if—so far—

Senator-Judge Tulfo (R). General question *'to, eh*.

Mr. Boransing. Yes, Sir. Like, for instance, Sir, *nasa Task Force Zamboanga po ako commander*, sir. So currently, last May until now, Sir. The Vice President has visited us, I think—the city, once before but there were no request for us to secure or provide security to the Vice President.

Senator-Judge Tulfo (R). Whether mag-request *siya o hindi, kasama na doon sa pupuntahan niyang event, tulad ng YLS, para masiguro na—hindi lang siya, pati mga*

estudyante, gumagamit kayo ng intel ninyo na walang mangyaring untoward incident, walang pupuntang mga terorista, tama?

Mr. Boransing. I couldn't comment, Sir, since *hindi po siya nag-visit sa any of the units activities.*

Senator-Judge Tulfo (R). *Ang tanong ko lang, Sir, kasama sa trabaho ninyong i-secure lahat ng VIP, lalo 'pag VP ang pupunta, hindi ba? Masiguro na safe siya doon sa venue?*

Mr. Boransing. I can't comment, Sir, because *hindi po nangyari, Sir. Pangalawa, Sir, is we provide security primarily for the students po, Sir.*

Senator-Judge Tulfo (R). For the students. *Ah, hindi ninyo na kasama sa trabaho ninyo na para ma-secure siya para—kasama na iyon ng mga security niya, ng mga intel officers niya. Tama? Siguro?*

The Presiding Officer. Kindly answer, Mr. Boransing.

Mr. Boransing. Last question, Sir, sorry, Sir. With what we secure, Sir, since this youth leadership summit activities are conducted in areas which have a high threat level, we secure the route going to and from and the activity site, and even the activity site itself. So, if there is anybody, we make sure that not only VIPs but all participants and *sino pong pupunta mag-attend, Sir, are secure, Sir. So, if it happens to be a VIP, then kasama na po sila sa security po.*

Senator-Judge Tulfo (R). *Iyon ang tanong ko. Salamat po sa sagot na iyon.*

Now, *sinasabi ninyo na never kayo nakatanggap ng confi funds from DepEd para sa mga YLS activities ninyo. Isa lang po na tanong, and then I'll wrap up. Sige. Never kayo nakatanggap?*

Mr. Boransing. Yes, Sir, for the year 2023 which is the period cited in the certification, Sir.

Senator-Judge Tulfo (R). Now, *noong humingi sa inyo ng certification para doon sa AOM ng DepEd, tinanong ka kanina kung ano ang reaction ninyo, ano ulit iyong sagot ninyo? Wala kayong reaction?*

Mr. Boransing. Yes, Sir.

Senator-Judge Tulfo (R). *Pero did you at least or anybody from you in the military saying na "Bakit ninyo kami dinamay diyan, bakit kayo humingi ng certification? Eh iyong certification na iyan nagamit ninyo tuloy kami samantalang wala namang kinalaman kami diyan sa confi funds ninyo, wala—hindi naman kami tumanggap." Why did you do that?*

Mr. Boransing. For me, personally, Sir, I had no reaction, Sir. We were preoccupied with very important security matters in our area of operation, Sir.

Senator-Judge Tulfo (R). Thank you, that's all. Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Raffy Tulfo.

Senator-Judge Lacson is recognized. You may proceed, Sir, when you're ready. You have two minutes.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

You belong to PMA class 19...?

Mr. Boransing. '98, Sir.

Senator-Judge Lacson. ...98.

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. So, good afternoon, Cavalier.

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. And just for clarity, 'no? Being the assistant chief of staff for CMO of the 1st Infantry Tabak Division, you're not in a position to know *kung mayroon talagang na-release na* confidential or intelligence funds from DepEd or any civilian agency for that matter, *sa* 1st Infantry Division?

Mr. Boransing. Yes, Sir. But during the hearing of the 2024—October 17, 2024, we checked if any—usually, if there are funds transferred, it's agency to agency, Sir, and there were no records, Sir.

Senator-Judge Lacson. *Kaya nga*, 'no? That brings me to my next question. *Kung mayroon mang na-release na* fund, *hindi sa iyo mare-release* but through the assistant chief of staff for intelligence...

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. ...or even directly to the commanding general of the 1st Infantry Division?

Mr. Boransing. I'm not an expert in—

Senator-Judge Lacson. *Kaya nga*.

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. *Kaya nga* you wouldn't know?

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. That's my question.

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. So, as far as I'm concerned, I don't think you're a competent witness here aside or save for the certification that you issued.

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. *Ito bang* certification, *sarili mong* wordings *ito? Ikaw mismo* *iyong* *nag-craft?*

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. *Kasi ang* *napansin ko lang* *ditong* relevant, *iyong* *nag-certify ka doon sa*—which resulted in zero reported CTG...

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. ...which is a statement of fact, *hindi ba?*

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. *Walang nangyari?*

Mr. Boransing. Yes, Sir.

Senator-Judge Lacson. *Alam mo ba* *noong* *nag-certify ka na* *gagamiting* liquidating instrument *ito para sa* confidential fund?

Mr. Boransing. No, Sir.

Senator-Judge Lacson. You were not aware?

Mr. Boransing. No, Your Honor.

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Lacson.

Senator-Judge Aquino is recognized. You have two minutes, Sir. You may proceed when you're ready.

QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. *Maraming salamat. Marami ho sa mga tanong ko natanong na rin ng mga kasama ko, ito na lang po iyong natitira.*

Colonel, *magkano po iyong event, iyong YLS?*

Mr. Boransing. Sir, good afternoon, Sir. I assume you're asking about how much the army budgets for each YLS.

Senator-Judge Aquino. Yes.

Mr. Boransing. It depends, Sir. There is, like for instance per record, Sir, *iyong sa Lanao del Sur na YLS is 60,000, mayroon pong 30,000.*

Senator-Judge Aquino. Pesos?

Mr. Boransing. Per activity *po*, Sir.

Senator-Judge Aquino. Pesos?

Mr. Boransing. Yes, Sir.

Senator-Judge Aquino. Yes.

Mr. Boransing. It depends on the unit, usually it's the infantry battalion, our most tactical unit, who does the programming. So, he submits a request of the activity and how many—

Senator-Judge Aquino. Colonel, if I may cut you *lang*. *Iyong eight na YLS na pinag-uusapan natin, magkano po iyong total noon? Kahit estimate po.*

Mr. Boransing. I have the records in my cellphone, Sir, but basing—I think for the army, it's around P30,000 per activity.

Senator-Judge Aquino. Pesos?

Mr. Boransing. Yes, Sir.

Senator-Judge Aquino. So, *hindi ho lalampas ng P500,000 iyong ginastos ninyo po sa YLS?*

Mr. Boransing. No, Sir. No, Sir. It's more for coordinations. *Karamihan po*, Sir, is representation *ang* account code *niya*, Sir.

Senator-Judge Aquino. Okay. But *iyong ibang ahensiya, ano po iyong kanilang counterpart? So, may pakain ba ito? Mayroon bang logistics na ibinibigay doon sa mga bata, transportation allowance?*

Mr. Boransing. Your Honor, for the local government units, for the participants, *iyong youth po*, they provide the meals, they provide the t-shirts, *parang* uniform *nila* during that time, and some funds for team building the activity, Sir.

Senator-Judge Aquino. *Hindi ninyo na po alam kung magkano iyong ginastos diyan?*

Mr. Boransing. *Hindi po*, Sir.

Senator-Judge Aquino. Okay. So, *ang pinakamalaking gastos* would be the LGU. *Tama po ba iyon?*

Mr. Boransing. Yes, Sir.

Senator-Judge Aquino. Okay. And then *kayo po*, coordination *lang*, so, *hindi lalampas ng singkuwenta mil.*

Iyong DepEd po, ano iyong kanilang gastos po diyan, apart from the confidential funds na pinag-uusapan po natin?

Mr. Boransing. *Hindi po ako*— I really don't know *po*, Sir, how much they spent.

Senator-Judge Aquino. Let me rephrase. *Ano iyong activities po ng DepEd?*

Mr. Boransing. For coordination, Sir. Then, the use sometimes of their facility, and they provide subject matter experts on specific topics *po*.

Senator-Judge Aquino. *May honorarium po siguro iyon na gastos siguro, o libre po iyon?*

Mr. Boransing. *Hindi po ako—*

Senator-Judge Aquino. *Hindi ninyo alam?*

Mr. Boransing. *Hindi ko po alam, Sir.*

Senator-Judge Aquino. Okay. So, in short, *iyong Army ang ginagastos dito less than P50,000, around P50,000?*

Mr. Boransing. Just a rough estimate, Sir.

Senator-Judge Aquino. *Iyong LGU po pakain for about 60 youth, tama po ba? Ano iyong pinakamaraming kabataan—500?*

Mr. Boransing. That's the total of eight YLS activities, Sir.

Senator-Judge Aquino. So, for one activity, it's about 60 to 70?

Mr. Boransing. *Mayroon pong minsan 30, mayroon pong isa, minsan, is more than 100. It depends on what level. There are YLS for provincial, regional level, and municipal level, Sir.*

Senator-Judge Aquino. Okay. So, *sabihin mo nang tag-300 per head iyong mga bata, iyong transportation at saka pagkain, another 30- 40,000; kayo po, another 50,000. Siguro po per event malaki na siguro iyong 100,000 o 150,000? Estimate ko po ito, ha. Would you agree with me?*

Mr. Boransing. *Hindi ko pa talaga alam, Sir, kasi hindi namin nakita iyong the budget or the expenses of the other agency, Sir.*

Senator-Judge Aquino. Okay. But definitely for the Army, 60,000, malaki?

Mr. Boransing. Yes, Sir. One activity in Lanao del Sur was budgeted for P60,000.

Senator-Judge Aquino. Okay. *Hindi po kayo nagtaka na P15 million iyong ginastos para sa information for events that don't cost more than maybe P200,000; P150 to P200,000 per event?*

Mr. Boransing. I did not know the amount or that there was any funds by the DepEd po, sir.

Senator-Judge Aquino. *Nalaman ninyo po noong sa hearing, nabanggit na.*

Mr. Boransing. October 17 po. But it was in between—we were called in the middle of a long series of hearings po, Sir. So, it was—the information that was being—*medyo nag-information overload po kami.*

Senator-Judge Aquino. Okay. *Siguro po, Colonel, let me ask you po right now. More or less, alam naman ho natin iyong gastos per event, hindi iyan aabot ng P1 million. Hindi iyan aabot ng P500,000. At ngayon po, iyong impormasyon na P15 million po ang ginastos para sa purchase of information, for surveillance to secure the event, ano pong reaksiyon ninyo po, right now? Now, that hindi na po kayo na-information overload, puwede ninyo na pong isipin, ano? Mayroon ho ba kayong reaksiyon dito?*

Mr. Boransing. Well, Sir, as an active member of the Armed Forces, I do not think I should react. The Impeachment Court is still ongoing, Sir. As the Presiding Officer said, the COA decision is not yet final. And I think it is not appropriate for an active member of the Armed Forces to give his opinion on such a political issue po.

Senator-Judge Aquino. We'll give you leeway, Colonel, because you're serving our country.

Mr. Boransing. Yes, Sir.

Senator-Judge Aquino. *Pero kadalasan ho kasi, ang hinahanap ko rin kung ano iyong natural na reaksiyon ng mga indibidwal na may mga ganitong paratang, na may mga ganitong lumalabas na impormasyon. Kasi iyong natural na reaksiyon, iyon iyong magsasabi kung mayroon ba talagang tinatago o wala. Kung mas natural iyong reaksiyon, ibig sabihin walang tinatago. Kung hindi natural iyong reaksiyon, doon ho siguro parang may kuwestiyon. But in your case, because you're an active officer, I will not press you on that anymore.*

Sige po, iyon lang po. Mr. Presiding Officer. *Maraming salamat. Maraming salamat,* Colonel Boransing.

Mr. Boransing. Thank you, Sir.

The Presiding Officer. *Maraming salamat,* Senator-Judge Aquino.

Finally, Senator-Judge Kiko Pangilinan for his interjections. You may proceed, Sir, when you're ready, you have two minutes.

The Clerk is instructed to kindly inform Colonel Panopio that he is up next.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Good afternoon, Colonel. *Magandang hapon.*

Iyong isang taon na nagkaroon ng YLS at info education campaign, mayroon bang coordination between your office and the DepEd Security Officer Nolasco?

Mr. Boransing. No, Sir.

Senator-Judge Pangilinan. *Wala.* Was there any coordination between your office and the DepEd in relation to the gathering of confidential information for the YLS and the IEC?

Mr. Boransing. No, Sir.

Senator-Judge Pangilinan. Okay. You were the one who certified, *hindi ba*, you prepared the certification that was submitted by DepEd in order to liquidate the use of its confidential funds? *Iyon iyong mga testimonya* earlier. In issuing the certification, however, as you have testified, your certification does not in any way cover the use of the DepEd confidential funds?

Mr. Boransing. Yes, sir. The certification does not mention any fund support, fund release, or anything about funds, sir.

Senator-Judge Pangilinan. Yes, but it was submitted by the DepEd to liquidate, *hindi ba*, as part of its liquidation of the use of confidential funds. At least that's what you've learned after, in the hearings.

Mr. Boransing. Yes, sir.

Senator-Judge Pangilinan. Okay. *Nabanggit mo rin kanina na iyong coordination ng office ninyo sa DepEd sa regional, provincial, and up to the district—district level and up to—hindi ba? Tama? And tungkol— ang usapin po ninyo ay tungkol sa schedule of classes. Tama po ba? Consent ng parents doon sa participation ng mga bata.* You said that earlier.

Mr. Boransing. Yes, sir. Among others, sir, there are also some YLS that we asked permission for them to use their classrooms when they do not have any class, sir.

Senator-Judge Pangilinan. Yes. So, in other words, as you have, again, you were the one who certified as to the success of these events, and yet the information that was—or the inputs that was provided you by DepEd are really not, I mean, like you said, "open source." *Hindi naman siya confidential information. Hindi po ba?*

Mr. Boransing. Yes, sir. Yes, sir.

Senator-Judge Pangilinan. Yes. Okay. So, would you say that, and I share the, not in a pejorative or demeaning way, but I share the point raised earlier by Senator Lacson, that you would have actually been not the right person to certify on confidential funds for liquidation by the DepEd. I mean, you don't have the information necessary to identify how the confidential funds were spent. *Hindi po ba?*

Mr. Boransing. I'm not an intelligence officer, sir, so I'm not the expert to do so.

Senator-Judge Pangilinan. Yes. Thank you. No further questions.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Mr. Presiding Officer, *sa* Prosecution *na lang*. Kahit *na sino sa inyo*, *puwedeng sagutin iyong tanong ko*.

The Presiding Officer. Attorney Rey, would you like to take a crack at it?

Mr. Robles. Yes, Your Honor, if I can.

Senator-Judge Tulfo (R). Go ahead, sir. *Doon po sa 15.5 million confidential fund na ginamit para sa mga YLS, paano na-liquidate iyon? Paano na-disburse iyon? Iyon ba ay para sa pagbayad sa reward money sa mga informants?*

Mr. Robles. *Iyong sa mga ARs po na sinabmit (submit), lumalabas po na ibinigay nila na rewards. Tapos noong hiningan po sila ng proof of success, ito po iyong mga certification na ibinigay nila.*

Senator-Judge Tulfo (R). So *iyong 15.5, lahat iyon para reward money?*

Mr. Robles. *Opo.*

Senator-Judge Tulfo (R). *Ilang tao at magkano bawat isang tao, approximately?*

Mr. Robles. *Hindi ko po masabi ngayon, pero madami po, supposedly.*

Senator-Judge Tulfo (R). So *maraming tao*. And then, again, *mga aliases—Walang binigay kahit na alias, ano?*

Mr. Robles. *May mga acknowledgment receipts naman po, pero kasama po ito doon sa pinag-uusapan natin na may mga pangalan na unusual.*

Senator-Judge Tulfo (R). *Mga pangalan na unusual. So ibig sabihin, again, itong 15.5, walang mga safe houses dito, walang mga gamit, basta't puro reward money lang?*

Mr. Robles. *Ito po, para sa rewards lang. Iba pa ho iyong sa safe house, iba pa ho iyong purchases.*

Senator-Judge Tulfo (R). Yes, *itong 15.5 lang sa DepEd.*

Mr. Robles. *Opo.*

Senator-Judge Tulfo (R). So, *puro reward money lang ito sa napakaraming tao at ilan sa mga pangalan doon ay unusual iyong mga names?*

Mr. Robles. *Opo, para lang po iyon sa first and second quarter, hindi po—*

Senator-Judge Tulfo (R). *Puwede ka bang magbigay ng a couple of examples, magkano halimbawa ang isang informant?*

Mr. Robles. *Ang nakalagay po, sa pagkakaalala ko, 200,000, 100,000.*

Senator-Judge Tulfo (R). *Bawat informant.*

Mr. Robles. *Normally po mga doon sa range na iyon.*

Senator-Judge Tulfo (R). Thank you, Mr. Presiding Officer.

MANIFESTATION OF SENATOR ZUBIRI

Senator-Judge Zubiri said he would not ask questions but thanked Colonel Boransing for his service to the country and for his honesty and candor in answering the questions.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Mr. Witness, Colonel Boransing, *narinig ko po, graduate po kayo ng PMA class '98, ano po?*

Mr. Boransing. Yes, sir.

Senator-Judge Tulfo (E). All right. *Ano pong unang assignment ninyo when you joined as first-second lieutenant? Ano hong assignment ninyo?*

Mr. Boransing. I was assigned to the 57th Infantry Battalion in Maguindanao in 1998, sir.

Senator-Judge Tulfo (E). *So nasa operations po kayo.*

Mr. Boransing. Yes. I am an infantry officer, sir.

Senator-Judge Tulfo (E). Infantry. *Wala po bang basic na, ika nga, training pag infantry officer ka sa mga intelligence gathering, sir? Mayroon din naman kahit papaano.*

Mr. Boransing. Yes, sir. *Mayroon po, sir.*

Senator-Judge Tulfo (E). *Mayroon din po?*

Mr. Boransing. Yes, sir.

Senator-Judge Tulfo (E). *Hindi ka ba na-assign as intelligence officer through your career from second lieutenant to full colonel? Hindi ka ba na-assign sa intelligence, sa G2 or S2? Iyong mga ganoon. Hindi ba kasi G2 yata intelligence, sir?*

Mr. Boransing. No po, sir. I am purely operations and civil-military operations, sir.

Senator-Judge Tulfo (E). *So sa mga G3 ka. Pero mayroon po kayong kahit papaano background as a—kahit sa academy siguro, I believe naturuan din kayo ng mga intelligence gathering, dissemination, intelligence information dissemination. Tama po ba iyon?*

Mr. Boransing. Yes, sir. It's more of combat intelligence, sir. As an infantry officer, you're trained to the basics of combat intelligence po, sir.

Senator-Judge Tulfo (E). *Kasi medyo naguguluhan lang po, sabi ninyo wala ho kayong background sa intelligence. But then I'm sure as a military officer, required po kayo na kahit papaano, lalo iyong infantry officer, you have to have an intelligence background kahit papaano.*

Mr. Boransing. Yes, sir.

Senator-Judge Tulfo (E). *Medyo naguluhan lang po ako. I'm sorry. Correct me if I'm wrong.*

Mr. Boransing. Yes, sir. But our intelligence units po, sir, there is a specialized AFO, sir, military intelligence, po, sir. They are the ones in charge, and I think Senator Lacson is very familiar with it. *Sa amin po, sir, as infantry operations is basic lang po na combat intelligence. Pag may makita ka, malalaman mo hang kalaban iyan o hindi, sir. Pag saan po iyong maganda na approach pag mayroon kang pupuntahan, sir. But with regards to intelligence operations, sir, may specialized units po tayo and specialized officers for that.*

Senator-Judge Tulfo (E). *Pero you can differentiate kung iyong information na natanggap mo, intelligence information, kung ito po ba ay may value o walang value. You know that, right?*

Mr. Boransing. *Mayroon kasing—*

Senator-Judge Tulfo (E). *Nasa basic training po as an officer. Tama po ba?*

Mr. Boransing. *Hindi rin po, sir. It depends on what level, sir, kasi we have what we call as an intelligence cycle, sir. And I may be familiar with it, but I am not experienced with it, sir.*

Senator-Judge Tulfo (E). *When you're a platoon leader, sir, wala ka natatanggap na mga intel since nasa operation kayo na I'm sure nag-command po kayo ng isang platoon? May mga intelligence information ka natatanggap, eh, at your level, alam mo na kung ano ipapadating sa higher headquarters o hindi. Alam mo kung ano itatapon o hindi. Tama po ba, sir?*

Mr. Boransing. Yes, sir. What we usually do is we call the battalion intelligence officer, sir.

Senator-Judge Tulfo (E). *Iyon.*

Mr. Boransing. If there is a captured alleged enemy, it is the intelligence officer who assesses *kung anong* information *niya po*. *Hindi po kami*, sir.

Senator-Judge Tulfo (E). *Pati iyong* questioning, intelligence officer *muna*?

Mr. Boransing. Yes, sir.

Senator-Judge Tulfo (E). *Iyong* battalion S2.

Mr. Boransing. Yes, sir.

Senator-Judge Tulfo (E). All right. *Salamat po*, Colonel. No further questions, Presiding Officer.

QUESTIONS OF THE PRESIDING OFFICER

The Presiding Officer. Just a couple of questions from the Presiding Officer. Colonel, *konti na lang po*.

Mr. Boransing. Yes, sir.

The Presiding Officer. *Sabi ninyo kanina* *iyong* certification *na in-issue ninyo*, *parang* certificate of participation *lang*. *Tama po ba*?

Mr. Boransing. Yes, sir.

The Presiding Officer. *Pero nilagay ninyo po doon sa* certification *ninyo*, if I may quote, "successfully collaborated with the Department of Education." And then in a later part of the paragraph, "which resulted in zero reported CTG recruitment." So, it's not a mere certificate of participation, but actually showed proof of success of your undertaking?

Mr. Boransing. Yes, sir. And if I may, sir. The certificate states that as a result of the YLS, there was no CTG recruitment and on record *po iyan*, sir, *na* there was no—during that year, sir.

The Presiding Officer. So, it was a success. YLS, IEC was a success?

Mr. Boransing. To a certain degree, sir. Yes, sir.

The Presiding Officer. Next, you mentioned that the target of CTGs are the youth. *Kasama po ba rito*, elementary *at* high school?

Mr. Boransing. Yes, sir. We have so many instances *po*, sir, of underage fighters —child warriors being recruited, especially those *po na mga* indigenous people *po*, sir.

The Presiding Officer. *Hindi ninyo po nabanggit ang* CHED. *Hindi po ba kasama ang* college students *sa inyong* YLS *at saka* IEC?

Mr. Boransing. Usually, sir, for those eight *po*, sir—*kasi hanggang* Grade 12 *na po ngayon*, sir. And we usually have the senior high, junior high, and some Grade 7, sir, as long as allowed by parents.

The Presiding Officer. Let me cut you short, sir. So, *walang* college?

Mr. Boransing. For those eight *po*, sir, *wala*, sir.

The Presiding Officer. *Ang pinakabata* would be Grade 7?

Mr. Boransing. Yes, sir.

The Presiding Officer. *Pinakamatanda* would be Grade 12?

Mr. Boransing. Yes, sir.

The Presiding Officer. And for the Counsels, Attorney Rey, Attorney Lindon, I would like to ask a question just to confirm. It's a common exhibit of both parties. The August 8 credit notice of the COA, you're familiar with it, Attorney Rey?

Mr. Robles. Yes, Your Honor.

The Presiding Officer. Attorney Lindon?

Mr. Bacquel. Yes, Your Honor. For the record, Your Honor, it's Defense' Exhibit D-I-100-DE and the Prosecution —

The Presiding Officer. P-I-21-c, yes.

Mr. Bacquel. The Prosecution also marked the very certified ...

The Presiding Officer. Yes.

Mr. Bacquel. ... our certified copy as P-I-21-e, Your Honor.

The Presiding Officer. Yes. My question, if both the Counsels will confirm, is this 75 million was—a credit notice was given by the COA covering this 75 million, which covers the fund that Colonel Boransing is talking about, the 15.4 million. Would that be correct, Attorney Rey?

Mr. Robles. Yes, Your Honor.

The Presiding Officer. Attorney Lindon?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. And this means that from the point of view of COA, they accepted the liquidation submitted by the DepEd in regard to the 75 million, which includes, as I said, the 15.54 million. Would that be a correct statement, Attorney Reyes?

Mr. Robles. Yes, Your Honor, with the qualification, Your Honor.

The Presiding Officer. Yes, please.

Mr. Robles. During the testimony of COA witness Xylene del Campo, she specifically said that when they learned that the confidential funds were transferred by the SDOs of the DepEd and the OVP, then they—she said now that there is a problem with the liquidation ...

The Presiding Officer. I will go there, Counsel.

Mr. Robles. ... and they are now considering conducting fraud audit in that regard, Your Honor.

The Presiding Officer. I will go there, Counsel, but we're not yet there. The fact is, right now, a notice—a credit notice was given by COA covering these funds, right now.

Mr. Robles. Yes, Your Honor.

The Presiding Officer. Do you confirm, Attorney Lindon?

Mr. Bacquel. We confirm, Your Honor.

The Presiding Officer. There is.

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. It's a common evidence. And to your point, Attorney Rey, under PD 1445, Section 52, the COA has three years to change their findings ...

Mr. Robles. Yes, Your Honor.

The Presiding Officer. ... from the time they issued it. Do you also confirm, Attorney Lindon?

Mr. Bacquel. We confirm, Your Honor.

The Presiding Officer. However, no such change in their findings have been done by COA as of this date. Would that be a fair statement?

Mr. Robles. Yes, Your Honor. That's why we were noting that according to the witness, the leadership of COA and the COA-ICFAO are now studying the—referring this matter to the COA Fraud Audit Unit for the—

The Presiding Officer. But no action has been taken thus far?

Mr. Robles. So far, Your Honor.

The Presiding Officer. Okay. Attorney Lindon, no action has been taken?

Mr. Bacquel. Yes, Your Honor. May we just manifest that the Counsel for the Prosecution is testifying, Your Honor.

Mr. Robles. No, Your Honor. That is a fact on record, Your Honor.

The Presiding Officer. Well, it was on the record. Indeed, the witness said that, but the witness also, Attorney Rey, cannot speak for COA. I think her level is, she's expressing her opinion, but not on behalf of COA. But COA has that power to still change their findings, but they have not done so.

Mr. Robles. We submit, Your Honor. That's the fact, Your Honor.

The Presiding Officer. Okay. Thank you very much.

QUESTIONS OF SENATOR-JUDGE CAYETANO (P)

Senator-Judge Cayetano (P). Good afternoon, Colonel Boransing.

Mr. Boransing. Yes, ma'am.

Senator-Judge Cayetano (P). Yes. I'd just like to be educated. You mentioned that *itong klaseng* activities *ninyo* have been ongoing since the early 2000s, I think like 20 years ago. Is that correct?

Mr. Boransing. 2002, ma'am.

Senator-Judge Cayetano (P). 2002, yes.

Mr. Boransing. Yes, ma'am.

Senator-Judge Cayetano (P). I'm just very curious, and you also mentioned—before I pose my main question—that they've been recruiting even kids from the indigenous communities. You just mentioned it during one of the questions of the senator-judges.

Mr. Boransing. Yes, ma'am.

Senator-Judge Cayetano (P). Would your approach to educating the young, the children, the students—did it adapt over the years to cover the use of technology in the recruitment, in whatever propaganda education of other groups, exactly what you're trying to counter? *Nag-adapt po ba kayo?*

Mr. Boransing. Yes, ma'am, we have adapted. Specifically, violent extremism, there are some reports that there used to be or there are reports of recruitment through social media. So, the Armed Forces and with the other stakeholders are preparing for this. But I'm not the subject matter expert on that.

Senator-Judge Cayetano (P). Okay.

Mr. Boransing. But we have adapted.

But for the youth leadership seminar—YLS seminar, yes, it has changed through the years; it's adapting. Specifically, we have new instructors that we invite, and we also invite from TESDA and other agencies to give the youth hope mainly that the world is bigger than your *sitio* or your barangay, and there are scholarships, there are ways to earn a living. And I think, basically, that is one thing that the Youth Leadership Summit gives to these disadvantaged youth.

Senator-Judge Cayetano (P). Participants.

Mr. Boransing. Yes, Your Honor.

Senator-Judge Cayetano (P). So, it seems to me, what you're trying to portray or share with us, it's a whole-of-government approach, *ano?* *Kasi nabanggit mo na iyong* TESDA, about opportunities for the youth, *ano?* But would you say—your answer is yes?

Mr. Boransing. Yes, ma'am.

Senator-Judge Cayetano (P). Sorry, I cut you off.

So, would you say that in developing these topics—again, going back to my specific point *na* adapting to the use of technology, *kung* 20 years ago, you'd literally be saying *na may* physical body *na magre-recruit sa inyo, ganito, ngayon, baka online iyan, baka nga* through the use of games, *hindi ba?* Would you say now that that is Army-led, PNP-led, DepEd-led? I'm just curious who would know best on how these children are being targeted.

Mr. Boransing. I think it's not the Army, Your Honor. You're correct. We just try to instigate, to coordinate and to start the convergence. And I can speak for Zamboanga Peninsula where I have been going around, and all the LGUs have been very active with regards to recruitment or violence online and we are trying to support them as the Armed Forces. It's not our expertise. We just help where we can be helpful.

Senator-Judge Cayetano (P). So, I guess *iyong* conclusion *natin* is whole-of-government approach?

Mr. Boransing. Basically, yes, Your Honor.

Senator-Judge Cayetano (P). And whole-of-society because I think you need the parents involved there as well, right?

Mr. Boransing. The parents *po*, the whole-of-society, whole-of-government.

Senator-Judge Cayetano (P). Okay. Thank you.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). For the Prosecution.

The Presiding Officer. Attorney Rey, if you may—if you will, please.

Senator-Judge Cayetano (A). I'll emphasize *lang* before I ask. This is a clarification. Because when I clarified with Congressman Diokno, some interpreted it as someone won or lost the debate. It's not a debate, and the senator-judges are not supposed to argue with you nor you to us. But I just want to clarify your theory.

So, is your theory that *basta't hindi iyong SDO ang mag-release noong funds, mayroon na siyang fraud or mayroon na siyang*—can you categorize it? Is it just a violation or *mayroon na siyang fraud*?

Mr. Robles. Well, Your Honor, I think we have to refer to the joint circular in that regard.

It's very clear in the joint circular that it's the SDO who is supposed to be disbursing the funds. And in fact, in the joint circular, the SDO is not even supposed to transfer possession of the funds to another accountable officer. So, I would submit, Your Honor, that the answer is yes.

Senator-Judge Cayetano (A). Okay.

Mr. Robles. If the SDO transferred the funds to another person who is not an accountable officer and not an SDO and not bonded, that would be illegal, Your Honor.

Senator-Judge Cayetano (A). Okay. Two follow up questions. So, one, when someone is the accountable officer. So, like in this case, confidential funds or let's say *sa intelligence funds*. So, let's say the good Colonel was the SDO, *pero hindi siya iyong operative sa field. Hindi ba ire-*

release *din niya sa isang operative, na iyong operative na iyon ang pwede namang magbigay doon sa tao sa field?* So, in this case, what's the difference with an SDO giving it to Colonel Lachica and then Lachica following the operation?

Mr. Robles. *Hindi po kasi ganoon. Iyon pong confidential fund ina-advance ng SDO sa pondo ng DepEd. 'Pag pinasa niya sa iba, ina-advance niya sa susunod na tao. Tapos ia-advance pa sa susunod na tao, wala na pong proper accountability. So, sa tingin ko po at nakalagay sa Joint Circular, bawal po iyon.*

Senator-Judge Cayetano (A). Okay. So, isn't it true that what it means by being accountable is that, *pagka may mali, may fraud, hindi napunta sa tama, ikaw iyong accountable?*

Mr. Robles. *Opo. Tatlo po kasi iyong accountable officer na nakalagay doon sa Joint Circular. Makikita n'yo po doon iyong SDO, iyong accountant, and the head of agency. Iyon po iyong tatlong accountable officer.*

Senator-Judge Cayetano (A). Okay. So, the last clarification. Assuming the SDO *nga* gave it to someone, whether it's a Security Officer, whatever the designation, so that *may* operation *sa field*, you'd categorize it as illegal or—so, can you elaborate what's the difference between irregular, illegal, unlawful?

Mr. Robles. *Ang nakalagay po kasi—*

The Presiding Officer. With the indulgence of Senator-Judge Cayetano, we might be treading on the Counsel testifying already on facts that are not yet testified to by any witness they have called.

However, to answer the question of Senator-Judge Cayetano, the COA stated that they issued a Notice of Disallowance on the three quarters of the OVP confidential fund when they learned that it was given by Gina Acosta to Colonel Lachica. That was the basis of their issuance of a Notice of Disqualification.

Senator-Judge Cayetano (A). Yes.

The Presiding Officer. That would be based on the evidence.

Senator-Judge Cayetano (A). So, maybe I'll explain myself without arguing, Mr. Presiding Officer, Senator-Judge Escudero, and to the Prosecution. Because this is an impeachment, and although it's not a criminal case in the sense that there's a criminal penalty, if found guilty, the Vice President will not be allowed to run anymore, and she will be removed from office, although she was voted by millions of people. So, for a Senator-Judge like me, it is important to know whether it was an irregularity wherein we should caution or reprimand, or whether it is automatically fraud. And, also for non-lawyers, it would be good to know, at some point, whether there's a presumption that shifts, 'no. For example, the Prosecution made it very clear at one point, *hindi ba*, earlier on, *na kapagka hindi ma-account, nagshi-shift na iyong burden*. So, that's very clear, *hindi ba?* So, *halimbawa, hindi na-account, nag-shift ngayon sa Prosecution*; it's not a conclusive presumption. Meaning, they can show *na hindi na-account*. So, that's what I meant in asking these questions, Mr. Presiding Officer, *na assuming na nagkamali iyong SDO o akala nila puwede at naibigay sa iba*, in the eyes of the Prosecution, is that *per se* already fraud, or you're just saying it's irregular, illegal?

Mr. Robles. We submit, Your Honor, that the *prima facie* presumption that there was misappropriation kicks in.

Senator-Judge Cayetano (A). So, meaning, *prima facie*, that on its face, so now the burden, for you, shifts to the Prosecution to show *na ay hindi*, irregular or *may mali pero, hindi ito fraud*.

Mr. Robles. That's our theory, Your Honor.

Senator-Judge Cayetano (A). Okay. That's all, Mr. Presiding Officer. I just wanted that to be clear to all of us. Thank you.

REMARK OF THE PRESIDING OFFICER

The Presiding Officer clarified for the record that the burden of proof remains with the Prosecution at all times, while the burden of evidence may shift depending on how the issue is

presented. He emphasized that, in any case, the ultimate burden of proof remains with the Prosecution.

He then thanked Colonel Boransing for his time and cooperation and excused him from the witness stand.

MANIFESTATION OF THE COUNSEL FOR THE PANEL OF PROSECUTORS

Mr. Robles. Your Honor, before we proceed.

The Presiding Officer. Yes.

Mr. Robles. With a desire to try to expedite the proceedings, Your Honor, we are supposed to present Colonel Magtanggol Panopio. And we have also previously requested for a subpoena for Major General Adonis Bajao. But we have reason to believe that when they're presented as witnesses, they will testify, essentially, in more or less the same manner as the previous witness.

The Presiding Officer. Including Colonel Panopio?

Mr. Robles. Including Colonel Panopio. And there is one other witness who was also summoned to the Committee on Good Government and Public Accountability on October 17, 2024, Lieutenant Colonel Carlos Sangdaan, who we are also contemplating as witness.

We would like to request, if the Counsel for the Respondent, would be willing to consider stipulating that when presented as witness, they will testify, essentially, more or less on the same manner as Colonel Boransing. We have a formal offer here, Your Honor.

The Presiding Officer. Let me change it a bit, before Attorney Sheila.

Attorney Rey, the Counsel for the Respondent already stipulated as to the documents you'll be asking these witnesses to identify.

Mr. Robles. Yes, Your Honor.

The Presiding Officer. Namely, Major General Bajao and Colonel Panopio, as well as the other certifications.

Mr. Robles. Yes.

The Presiding Officer. So, you mean to tell me, they will testify as to the fact that they executed the certification?

Mr. Robles. Yes, Your Honor, and maybe—

The Presiding Officer. And that they did not know that it will be attached to the response of the DepEd to the COA AOM?

Mr. Robles. Yes, Your Honor. That was what they said in the House hearing.

The Presiding Officer. Those two points?

Mr. Robles. And also—

The Presiding Officer. What would be the third point?

Mr. Robles. There were no confidential or other funds or confidential information which were downloaded by the DepEd to their respective units.

The Presiding Officer. Can I change that to "they are not aware of any"? Not that there was none, but that they were not aware of any.

Mr. Robles. We will submit, Your Honor.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Ms. Sison. Your Honor, before I respond to the proposal for stipulation on the other intended witnesses from the Armed Forces of the Philippines or the Philippine Army, may I just also counter-propose, if the Prosecution is willing to also stipulate?

I know that the Prosecution had already responded to the query earlier of the Presiding Officer on the existence of the credit notice for first quarter and second quarter of 2023 issued by the Commission on Audit, in respect of the audit observation memorandum against the Department of Education under the Vice President's term, which on our original document was actually marked as both the Prosecution and Defense's exhibits.

Are they willing to stipulate that there is, in fact, a credit notice issued by the Commission on Audit, dated August 8, 2024, on the entire P75 million for the first and second quarter of 2023, which was actually the subject matter of the testimony of the last witness, Major General Boransing, Your Honor?

Mr. Robles. Yes, Your Honor, that's a matter of record.

Ms. Sison. Then, thank you for that, Your Honor.

The Presiding Officer. Noted.

Ms. Sison. Now, as to the proposal to stipulate whether the three other witnesses or AFP officers, that they will testify on the fact that there were no confidential funds that were transferred agency to agency, then we can stipulate on that. But we will never stipulate that there were no confidential information or intelligence information shared by the Department of Education under the Vice President's term as its Secretary using the confidential funds, because I have here copies of the eight certifications that the Prosecution had earlier stipulated on. Because the testimony of Major General Boransing only covered one certification and not the entire number of Youth Leadership summits that were conducted by the AFP; that's No.1 clarification.

And No.2, in all these certifications—and the documents will speak for themselves under the Original Document Evidence Rule that states here; for example, in the certification of Colonel Manaros M. Boransing II, the document itself stated, "That it has successfully collaborated with the Department of Education that resulted in zero reported city jail recruitment," *et cetera, et cetera*. And in the ultimate portion of this certification, it says here, "That the certification is issued this first of January 2024 at Kuta Major L. Sang-an, Barangay Upper Pulacan, Labangan, Zamboanga Del Sur, for whatever legal purpose it may serve."

Mr. Robles. Your Honor?

Ms. Sison. Also, Your Honor—I am not yet done, Your Honor, if I may just finish before the Prosecution may be allowed to speak.

The certification issued by Lieutenant Colonel Carlos B. Sangdaan, Jr. specifically stated, "That these collaborative efforts with the Department of Education Region I, NICA Regional Office," *et cetera, et cetera*, "were conducted to insulate the students from exploitation by the communist terrorist groups and inform them of the ills of terrorism, in close partnership with the Department of Education."

Now, in the certification, dated December 5, 2023, of Lieutenant Colonel Magtangel Panopio, who is one of the witnesses scheduled to testify today by the Prosecution, it says here in paragraph 2 of the certification, "That these collaborative efforts with the Department of Education were conducted to insulate the students from recruitment by the CPP-NPA-NDF"

Mr. Robles. At this juncture, Your Honor—

Ms. Sison. ... and the third paragraph—I am not yet finished, Your Honor.

Mr. Robles. Counsel is already testifying, Your Honor.

Ms. Sison. "The identification of the areas—"

The Presiding Officer. Kindly wind up, Attorney Shiela. Attorney Shiela, kindly wind up because—

Ms. Sison. Yes, Your Honor. This is the last, Your Honor. "The identification of the areas where these summits are to be conducted was made possible through the information we primarily got from the DepEd," *et cetera*, and the certification was also issued for whatever legal purpose it may serve. On that note, Your Honor, that is the only condition that we will be willing to stipulate, Your Honor.

The Presiding Officer. Your time will come to present on that side, Counsel.

Ms. Sison. Yes, Your Honor, I understand. But this was also already stipulated on by the Prosecution.

CLARIFICATION OF THE PRESIDING OFFICER

The Presiding Officer sought clarification from the parties on whether they were willing to dispense with the testimonies of Colonel Panopio, Colonel Sangdaan, and Major General Bajao, subject to certain stipulations.

After confirmation from Attorney Robles, the Presiding Officer summarized the proposed stipulations as follows: (1) that the military officers issued certifications pursuant to the Original Document Rule, such that the documents would speak for themselves; and (2) that no confidential funds had been downloaded by the DepEd to the Philippine Army or to the Armed Forces of the Philippines for the conduct of the YLS and IEC.

Attorney Sison agreed that a stipulation could be made only as to the absence of any transfer of confidential funds from the DepEd to the Philippine Army or the AFP for the stated activities. She cautioned against the use of the term "downloaded," preferring the more precise term "transferred," to avoid misinterpretation.

Attorney Sison declined to stipulate that the military officers were unaware of the use of their certifications as attachments to the DepEd's response to the Audit Observation Memorandum (AOM) issued by the Commission on Audit (COA). She explained that the certifications were issued for whatever legal purpose they might serve, indicating that the officers were aware of the potential legal use of the documents.

Attorney Robles raised an additional possible stipulation on whether the witnesses had received information regarding confidential funds from the DepEd. Attorney Sison likewise declined to stipulate, characterizing the proposed matter as a conclusion. The Presiding Officer then directed Attorney Robles to make an offer on the two disputed points to abbreviate the proceedings.

MANIFESTATION OF THE COUNSEL FOR THE PANEL OF PROSECUTORS

Attorney Robles proposed to stipulate that the four witnesses, Colonel Boransing, Major General Bajao, Colonel Panopio, and Colonel Sangdaan had appeared before the Committee on Good Government and Public Accountability of the House of Representatives (HOR) during the October 17, 2024 hearing. Attorney Sison asked Attorney Robles to confirm which witnesses were covered by the proposed stipulation. After he confirmed that all four witnesses were covered, Attorney Sison agreed to the stipulation, which the Presiding Officer noted.

REQUEST OF THE COUNSEL FOR THE RESPONDENT

Attorney Sison requested that Attorney Bacquel be recognized for the Respondent.

PRESENTATION OF WITNESS

Presiding Officer Escudero called Colonel Magtanggol Panopio of the Philippine Army to the witness stand, after which the Clerk of Court administered his oath.

The Presiding Officer then reminded Colonel Panopio that the use of cellular phones or any form of hearing device while testifying before the Impeachment Court was prohibited to prevent coaching or improper assistance during his testimony. Colonel Panopio confirmed that he understood the directive.



OFFER OF TESTIMONY BY THE PUBLIC PROSECUTOR

Mr. Robles. Yes, Your Honor. I will limit it to the points still in dispute.

The Presiding Officer. On the two points.

Mr. Robles. Yes, Your Honor.

We are presenting the testimony of the witness to prove that he issued a certification dated December 5, 2023 regarding the conduct by his unit of Youth Leadership Summit and Information Education Campaign within the area of their operations, and that, at the time he issued the said certification, he was not aware that it's going to be used by the Department of Education for the purpose of liquidating the expenditure of confidential funds, particularly for the payment of rewards in the amount of P15,540,000, and that the witness did not receive or is not aware of the receipt by him or by his unit of confidential information supposedly gathered by the Department of Education in relation to their conduct of the Youth Leadership Summit and Information Education Campaign in 2023.

DIRECT EXAMINATION OF WITNESS

Attorney Robles conducted the direct examination of the second witness, Colonel Panopio, as follows:

Mr. Robles. Thank you, Your Honor.

Colonel Panopio, *base po sa mga records na pinagkasunduan na ng Prosecution at ng Counsel for the Respondent, naisama po doon sa sulat dated April 17, 2024 ng Department of Education iyong certificates dated December 5, 2023 na in-issue ninyo tungkol doon sa YLS at IEC activities ng inyong unit noong 2023 para umano i-liquidate ang paggastos ng confidential funds ng Department of Education na umaabot sa halagang P15,540,000 na umano'y pinambayad ng rewards. Ang tanong ko po sa inyo, when for the very first time did you learn of this fact?*

Mr. Panopio. Please clarify, Your Honor. *Iyon pong paggamit ng confidential fund o pag-liquidate, Your Honor?*

Mr. Robles. *Alam n'yo po ba—kailan n'yo po nalaman na ginamit iyong dokumentong in-issue ninyo para doon—iyong certification na in-issue ninyo, pang-liquidate?*

Mr. Panopio. ... Your Honor, *nalaman po namin iyan noong nagharap kami sa Congress, noong nagkaroon po ng congressional hearing tungkol sa confidential and intelligence fund ng Department of Education, Your Honor.*

Mr. Robles. *Kailan po iyon, kung maalala n'yo?*

Mr. Panopio. Sometime 2024, Your Honor.

Mr. Robles. *Pag ipinakita ko po ba sa inyo iyong transcript ng stenographic note noong hearing na iyon, makikilala n'yo po ba kung doon or sa ihang petsa ginanap iyong hearing na iyon?*

Mr. Panopio. *Opo, makikilala ko po.*

Mr. Robles. Attorney RJ?

Your Honor, we are confronting the witness—

Mr. Bacquel. Your Honor?

The Presiding Officer. Would you like to stipulate, Counsel?

Mr. Bacquel. I believe that this has already been stipulated earlier.

The Presiding Officer. Already stipulated, Counsel, that he testified.

Mr. Robles. Okay. *So ang tanong ko po: ang sabi po n'yo, noong unang—noon sa unang pagkakataon n'yo lamang nalaman na ginamit iyong certification n'yo pang-liquidate ng confidential funds, ano po iyong naging reaksiyon n'yo noong nalaman n'yo iyon?*

Mr. Bacquel. Vague, Your Honor.

The Presiding Officer. Colonel Panopio, the date of the hearing is October 17, 2024, so *doon n'yo po unang nalaman ...*

Mr. Panopio. *Opo*, Your Honor.

The Presiding Officer. ... *na ginamit iyong inyong certification bilang isa sa mga liquidation documents ng DepEd sa COA-AOM.*

Mr. Panopio. *Doon ko lang po formally nalaman iyong information na iyon*, Your Honor.

The Presiding Officer. Did you have any reaction, Colonel, upon hearing or knowing that?

Mr. Panopio. *Medyo nagulat po kami kasi iyon pong aming certification is only for the certification that we conducted the Youth Leadership Summit. Hindi po namin isini-certify anything about money or funds*, Your Honor.

The Presiding Officer. That's your answer, Counsel.

Mr. Robles. Thank you, Your Honor.

Ano po ang paliwanag o dahilan na binigay sa inyo, kung mayroon man, kung bakit ginamit sa ganoong paraan ng DepEd iyong certification n'yo?

Mr. Bacquel. Vague, Your Honor.

Mr. Robles. It is clear, Your Honor.

The Presiding Officer. If he knows. Do you know, did DepEd ever explain to you why they did that?

Mr. Panopio. I think, Your Honor, I cannot answer for the DepEd. I can only answer for our office, Your Honor.

The Presiding Officer. So you don't know?

Mr. Panopio. I don't know, Your Honor.

Mr. Robles. Okay. *Ang tanong ko po: may kaugnayan po ba—ano po ang kaugnayan noong certification na in-issue n'yo doon sa paggasta ng DepEd ng confidential funds na nagkakahalagang P15,540,000 noong 2023 diumano'y sa pagbabayad ng mga rewards?*

Mr. Bacquel. Objection, Your Honor. Witness is incompetent to answer the question.

Mr. Robles. But he knows—

Mr. Bacquel. The question is speculative, and it calls for an opinion, Your Honor.

The Presiding Officer. Attorney Rey, I would have to sustain the objection. Witness would be incompetent to answer that question. Kindly modify or move to another point.

Mr. Robles. *Iyon pong—sino po sa DepEd ang nag-coordinate sa inyo noong 2023 para ipaalam sa inyo ang resulta daw noong kanilang confidential operations sa area n'yo?*

Mr. Bacquel. Objection, Your Honor. No basis, Your Honor.

Mr. Robles. I'm asking the witness, Your Honor, if there is anyone from the DepEd who gave them that information. That is the claim of—

The Presiding Officer. Counsel, I'm constrained to sustain the objection, Counsel. Attorney London is correct. Kindly reform, modify, or move to another point.

Mr. Robles. *Ang tanong ko po: sino po ang humingi? Sino po ang nagpa-issue sa inyo noong certification na in-issue n'yo?*

Mr. Panopio. *Iyon pong certification ay in compliance with the order of my commander to issue certifications to DepEd in coordination with then Usec Nolasco Mempin*, Your Honor.

Mr. Robles. *So—tama po ba, sabi n'yo, inutusan kayo, in-order-an kayo?*

Mr. Panopio. It is part of my job as the Assistant Chief of Staff for Civil Military Operations to issue certificates to our partners, especially on activities conducted by the division, Your Honor.

Mr. Robles. What explanation was given to you when you were asked to issue that certification?

Mr. Bacquel. Vague, Your Honor.

The Presiding Officer. If he knows.

Mr. Robles. Explanation, Your Honor.

The Presiding Officer. If he knows. If you know, Colonel?

Mr. Panopio. Yes, Your Honor. Our activities in the Armed Forces of the Philippines take collaboration with other agencies. So it is, I think, normal for our agency to issue certifications that such activities happened, in collaboration with different agencies of the government, Your Honor.

Mr. Robles. *So ano po ang—para saan po iyong pag-issue n'yo ng certification na iyon?*

Mr. Panopio. *Ang certification na ito po ay nagpapatunay na iyon pong mga Youth Leadership Summit ay totoong naisakatuparan sa aming area of operations during the year 2023, Your Honor.*

Mr. Robles. *Bukod pa roon, mayroon pa ho bang ibang dahilan kung bakit n'yo in-issue iyong certification?*

Mr. Panopio. As far as I'm concerned, Your Honor, *ang alam ko lang po ay pagpapatunay na ang mga activities ng Youth Leadership Summit sa area ng 7th Infantry Division ay naisakatuparan sa taong iyon, Your Honor.*

Mr. Robles. *Ano po ang kaugnayan noong certification na in-issue n'yo doon sa umano'y paghahayad ng reward ng DepEd gamit ang confidential funds, kung mayroon man?*

Mr. Bacquel. No basis, Your Honor.

The Presiding Officer. If he knows, Counsel.

Mr. Panopio. I have no information on that, Your Honor.

Mr. Robles. Anything else?

I think that will be all for the witness, Your Honor.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Bacquel manifested that the Counsel for the Respondent would dispense with the cross-examination of the witness.

The Presiding Officer then directed the Court to proceed with the interventions and questions of the Senator-judges.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Follow-up lang po doon sa tanong ko kanina kay Colonel Boransing. Kasi hawak ko rito iyong dalawang certifications: one issued by Lieutenant Colonel Panopio, now—

Full Colonel ka na, ano?

Mr. Panopio. Yes, sir.

Senator-Judge Lacson. Okay. The other, issued by Lieutenant Colonel Sangdaan. Mayroong paragraph dito, iyong specifically the second paragraph, parang template. Ito. Ito iyong sa 'yo.

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ha, "These collaborative efforts with the DepEd and the local government units were conducted..." *Sa kabila*, "These collaborative efforts with the DepEd were conducted to insulate the students..." "were conducted to insulate the students from recruitment." *Itong kabila*, "from exploitation," *tapos*, "and inform them of the ills of terrorism and communism." "and inform them of the ills of terrorism and communism." *Nag-usap ba kayong dalawa?*

Mr. Panopio. Your Honor, *iyon pong mga term na iyon ay commonly na ginagamit namin sa military*. So more or less, *magkakaparehas po kami ng wordings*, Your Honor. *Pero hindi po kami nag-usap ni Colonel Sangdaan*.

Senator-Judge Lacson. *Pero parang parehong-pareho, eh.*

Mr. Panopio. Because we are—

Senator-Judge Lacson. I'm just wondering, ha.

Mr. Panopio. Yes, Your Honor.

Senator-Judge Lacson. That's why I want it clarified.

Kasi kanina, tinanong ko si Colonel Boransing, siya iyong nag-craft noong language. Iyong sa kaniya, in fairness, iba. Pero napansin ko lang sa inyong dalawa, parang nagkopyahan kayo.

Mr. Panopio. I think, Your Honor, we are following the doctrine and format of our report because it is written in the YLS handbook. And all other activities, Your Honor, *halos magpaparehas po talaga iyong mga statement*.

Senator-Judge Lacson. *Pag-issue ng certification?*

Mr. Panopio. I am not aware of the certification of 5th Infantry Division, Your Honor. I'm just aware of the certification of the 7th Infantry Division.

Senator-Judge Lacson. Well, I'm telling you, it is almost similar, it's almost a template. *Kaya nga ako nagtatanong dahil bakit iyong kay Colonel Boransing, iba. Entirely different.*

Mr. Panopio. Yes, sir. Maybe because we are near with 5th Infantry Division, we are adjacent unit with the 5th Infantry Division and the 7th Infantry Division.

Senator-Judge Lacson. *Dahil magkapitbahay kayo?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

Mr. Panopio. Being in Region II and in Region III, Your Honor.

The Presiding Officer. Thank you.

Just to remind our Senator-Judges that we will try to adjourn today by about 2:30 so that we can convene the session at three, according to the Senate President.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Presiding Officer. The Senate President is recognized.

The Senate President. Thank you, Mr. Presiding Officer.

Magandang hapon, Colonel.

Mr. Panopio. *Magandang hapon po.*

The Senate President. Colonel, *binabasa ko iyong certification na ibinigay n'yo. At dito sa third paragraph, nakasulat dito*, "The identification of the areas where these summits are to be conducted was made possible through the information we primarily got from DepEd," and goes on. And then *sa next sentence*, "Also because of this exchange of information, we were able to perform our civil-military combat and intelligence operation in our AOR with a focus on protecting the schools." *Ayan, nasa ano siya, nasa screen.*

Colonel, *anong ibig sabihin nitong information? Ito ba ay confidential information, surveillance information na nanggaling sa DepEd?*

Mr. Panopio. Your Honor, when we conduct YLS, we are following different phases. During the planning phases, we are coordinating with different agencies, like the LGUs, the schools, and the community *kung saan po namin ka-conduct-kin iyong YLS*. So, *iyon pong information na galing sa iba-ibang agency ay tumutulong sa amin upang i-determine saan po namin ka-conduct-in, specifically iyong Youth Leadership Summit, Your Honor.*

The Senate President. *Pero dito sa inyong letter, itong galing sa DepEd, ito ba ay confidential information or surveillance information?*

Mr. Panopio. The information given to—

The Senate President. *Iyong galing sa DepEd lang ha, based on dito sa letter n'yo, this is in relation to the YLS and the IEC.*

Mr. Panopio. May I clarify, Your Honor, but when you say *galing sa DepEd*, I assume that it came from the teachers on the ground as members of the DepEd who provided us the information on how and where to conduct the YLS, Your Honor. So, I think *iyon pong information na ito ay masasabi natin na somehow mayroon pong secret—sorry, mayroon pong confidential or mayroon din pong open source*. But based on experience, it is mixed, Your Honor.

The Senate President. *Saan galing ito primarily from DepEd? Itong DepEd napakalaking organization, hindi ba? May teacher, may superintendent. So, itong “we primarily got from DepEd,” saan siya galing? Sinong personality?*

Mr. Panopio. Yes, Your Honor. During collaborations on the ground, Your Honor, different teachers as a teaching force in different schools, *doon po kami nakikipag-coordinate*. So, I think the teachers on the ground are the personalities being mentioned in that certification Your Honor.

The Senate President. So, in this particular certification in relation to the YLS at *tsaka* IEC, teachers *ang tinutukoy n'yo dito*.

Mr. Panopio. Yes, Your Honor.

The Senate President. *Wala nang iba? Walang principal, walang superintendent, walang regional director, walang national?*

Mr. Panopio. As to the direct and specific person being coordinated, I cannot say it is teachers only, but I cannot speculate, but more or less they are coordinating to different levels, from higher to lower echelon of the school, Your Honor.

The Senate President. *Dito sa ano na ito, dito sa certification na ito, from higher level all the way to down?*

Mr. Panopio. Yes, Your Honor.

The Senate President. *At mayroon kayong personal information na higher level all the way to the teachers. Kayo mismo, kasi kayo gumawa noong certification, I want to understand what went into this certification.*

Mr. Panopio. On the ground, Your Honor, there are different levels of coordination. For example, *iyon pong mga battalion commanders, company commanders, and platoon leaders*, they will coordinate directly on the ground while those who are in the higher echelon of command, they might coordinate to the district supervisor or even the higher levels to coordinate the conduct of YLS, Your Honor. *Ibig sabihin po, may kanya-kanya pong level ng coordinations.*

The Senate President. And *itong mga information na binibigay sa inyo, anong klaseng information? Nasabi n'yo kanina may open source, may confidential. Ano bang klaseng information ang binibigay sa inyo to conduct itong dalawang activities?*

Mr. Panopio. Your Honor, *iyong mga information usually, kung ano po iyong nangyayari sa community, halimbawa on ills of the—iyon pong HADR or hindi kaya iyong parenting and then mayroon din po sa terrorism and communism. Iba-iba po. Mayroon din pong drug abuse and other family matters. Your Honor.*

The Senate President. And these are confidential information, *iyong hinibigay sa inyo?*

Mr. Panopio. It is an open source information because it is known in the community. So, I cannot determine whether it is confidential or open, regarding *na lang po ito sa pag-take ng recipient or kung sino po ang nagbigay ng* information, Your Honor.

The Senate President. *Kanina nabanggit n'yo na mayroong open source, may confidential. Ano iyong confidential na nakukuha n'yo na galing sa DepEd?* And particularly *iyong source is DepEd lang*, I want to focus on DepEd.

Mr. Panopio. *Siguro po iyong mga—I can speculate only*, Your Honor. Maybe the personal circumstances like teenage pregnancies or other personal information *na maging confidential* because it is their personal life, Your Honor.

The Senate President. So, it is about the personal life of the students. *Iyon ang example n'yo* of confidential information.

Mr. Panopio. Yes, that's my example only, Your Honor.

The Senate President. Okay. And then *paano n'yo ginagamit itong mga confidential information na galing sa DepEd* in your selection of schools for the two activities?

Mr. Panopio. *Pinaplano po namin iyan kung saan po may mataas na mga pangangailangan iyong community and, of course, this is only in collaboration with the LGUs. Pag may nag-request po na LGU, we will conduct the YLS in that particular area. Because it is [those are] planned activities of the divisions specifically on our AOR but we will ascertain kung saan pong lugar kung mayroong request iyong LGUs or other government agencies*, Your Honor.

The Senate President. *Maraming salamat*, Mr. Presiding Officer.

Thank you ...

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

The Presiding Officer. Senator-Judge Hontiveros is recognized. You have two minutes, Ma'am.

Senator-Judge Hontiveros. *Salamat po*, Mr. Presiding Officer.

At magandang hapon po, Colonel.

Mr. Panopio. *Magandang hapon po*.

Senator-Judge Hontiveros. So, Sir, *ginamit din po ng DepEd iyong certification n'yo para i-liquidate iyong paggastos nila diumano ng kanilang confidential and intelligence funds. May sinabi po ba ang certification n'yo tungkol sa kung paano ginastusan ng DepEd iyong mga YLS at saka ibang-ibang [iba't ibang] activity nila?*

Mr. Panopio. *Hindi po sakop ng certification namin iyong area na iyon*, Your Honor.

Senator-Judge Hontiveros. *Ibig sabihin, hindi sakop ng certification n'yo iyong area ng ano iyong ginastos ng DepEd para sa mga YLS at iba pa.*

Mr. Panopio. Yes, Your Honor. About *sa* conduct of activity only, Your Honor.

Senator-Judge Hontiveros. Okay. So *tungkol lamang sa* conduct of the activity.

So *bilang signatory doon sa certification, may pinatutunayan ba kayo doon tungkol sa kawastusan [kawastuhan] ng paggastos ng DepEd ng kanilang confidential and intelligence funds?*

Mr. Panopio. I think *wala po akong pinatutunayan sa paggastos ng pera*, Your Honor. It is only stating that we conducted the YLS in our area of operation, Your Honor.

Senator-Judge Hontiveros. So *simpleng ang certification ay may laman na may dinaos na ganitong mga gawain. Wala pong sinasabi kung paano o anong pondo ang ginastos ng—partikular, ng DepEd diyan, whether regular funds nila or confidential and intelligence funds nila. Wala po iyon sa certification?*

Mr. Panopio. *Wala po iyon sa certification, Your Honor.*

Senator-Judge Hontiveros. All right *po*. So to confirm *muli*, finally, Colonel, *wala po kayong alam na sinabi doon sa certification tungkol sa paggastos ng DepEd sa confidential and intelligence funds diyan sa mga gawain ng YLS at saka IEC campaign activities?*

Mr. Panopio. *Wala po iyon sa certification ko, Your Honor.*

Senator-Judge Hontiveros. All right. *Maraming salamat po*, Colonel.

Salamat po, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

The Presiding Officer. Thank you, Senator-Judge Hontiveros.

Senator-Judge Erwin Tulfo. Again, Sir, kindly be mindful we're trying to convene at three.

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer. Three quick questions *lang po*.

Colonel, *iyong* activities *n'yo*—YLS, IEC—I know, this is centered on community relations, *hindi po ba?* Not to gather information but to win the hearts and minds of the community, *tama po?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Tulfo (E). All right. So *wala po talagang kayong* idea, it is not intelligence gathering.

Mr. Panopio. It is not, Your Honor.

Senator-Judge Tulfo (E). It is not. Then, did you ask any intelligence unit in your division *na baka sila po ang nagfi-feed ng* information *sa* DepEd against anti-insurgency? Could it be possible? Or *na baka may mga* student leaders *na miyembro po ng*, 'ika nga, insurgents. Would you happen to know? Did you ask?

Mr. Panopio. May I clarify the question, Your Honor.

Senator-Judge Tulfo (E). Question is, did you bother to ask, *kung hindi po kayo nagfi-feed ng intel info sa* DepEd, *baka sila nagbibigay ng info para sa mga estudyante na*, 'ika nga, they believe *na miyembro ng mga* insurgency groups, Sir?

Mr. Panopio. I can only speak for the civil military operations activities, Your Honor. *Iyon pong* activities *ng* intelligence community, they have their own, Your Honor.

Senator-Judge Tulfo (E). *Tama po*. I was just asking, Sir, *baka kung alam mo na baka nagko-coordinate din sila sa* intelligence units. But you said *na* you don't know.

Panghuli na lamang po, Sir. Can you confirm *ba na*—or would you happen to know, Sir, the difference between a confidential fund and intelligence fund?

Mr. Panopio. With respect to the topic for the day, I don't have any idea, Your Honor.

Senator-Judge Tulfo (E). You don't have any idea between the confidential, intelligence funds. Well, Sir, any confidential fund is a fund to be used by a civilian agency—not military, not police—to gather information. *Iyong* intelligence fund *po* used by the AFP and the PNP to gather intel information for national security. All right.

Iyon na lamang po. *Maraming salamat*, Mr. Witness.

Mr. Presiding Officer, thank you *po*.

Mr. Panopio. Thank you, sir.

The Presiding Officer. Thank you, Senator-Judge Erwin.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

The Presiding Officer. Thank you, Senator-Judge Erwin.

Senator-Judge Raffy. You have two minutes.

Senator-Judge Tulfo (R). *Magandang hapon po, Colonel.*

Mr. Panopio. *Magandang hapon po.*

Senator-Judge Tulfo (R). *Gaano po kayo katagal nagpa-participate sa YLS?*

Mr. Panopio. *Noong as staff, Your Honor, or as an Officer?*

Senator-Judge Tulfo (R). It doesn't matter, staff—or officer, *sige*, as Officer.

Mr. Panopio. I've been participating in YLS for quite some time, Your Honor.

Senator-Judge Tulfo (R). *Iyong quite some time—*

Mr. Panopio. *Mga more or less mga, say, five years, Your Honor.*

Senator-Judge Tulfo (R). Five years. So, before VP Sara *ang naging* DepEd Secretary, *nandoon na kayo*, officer *na kayo ng* YLS *at nagpa-participate na kayo?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Tulfo (R). Okay. *Kamusta naman iyong mga naging* YLS *n'yo* at that time before VP Sara *ang* DepEd Secretary?

Mr. Panopio. I can say that our YLS is successful because we are able to gain the—or finish the—or attain the objective of YLS, which is insulating the youth from illegal activities, building their intelligence, and being a nation builder, Your Honor.

Senator-Judge Tulfo (R). Very good, Sir. *Ibig sabihin*, successful even before the time of Sara as the DepEd Secretary *sa mga* previous—So, *inabutan mo iyong* previous DepEd Secretary?

Mr. Panopio. Yes, Your Honor.

Senator-Judge Tulfo (R). *Sila ba ay nagpa-participate din doon sa* YLS program *n'yo?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Tulfo (R). Thank you very much.

The Presiding Officer. Thank you, Senator-Judge Raffy.

Senator-Judge Villanueva. Then Senator-Judge Hontiveros again.

Again, a kind reminder to our colleagues—and Senator-Judge Pangilinan with one question after Senator-Judge Hontiveros.

Kindly proceed, Senator-Judge Villanueva.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Thank you, Mr. Presiding Officer.

Sir, Colonel Panopio, same question *po kay* Colonel Boransing. *Nalaman n'yo po kung bakit kayo pinag-i-issue ng certification at binanggit po ba iyong purpose?*

Mr. Panopio. *Katulad po ng sagot ko kanina*, it is our, I think, normal duty to issue certificate as to the conduct of activity because we are collaborating with different government agencies, Your Honor.

Senator-Judge Villanueva. *Ulitin ko po iyong tanong ko. Alam n'yo ho iyong purpose noong hiningan kayo ng certification? Sinabi sa inyo, ito iyong purpose para hingan ka ng certification? Wala pong sinabi?*

Mr. Panopio. *Wala pong sinabi*, Your Honor, specifically.

Senator-Judge Villanueva. Thank you.

Colonel, regardless *kung ano iyong* designation *n'yo ho*. *Noong nag-issue po kayo ng certification, noong nag-issue po kayo*, did your actual duties in issuing that certification include collecting, analyzing, validating, or disseminating intelligence-related information?

Mr. Panopio. As CMO officer, we are only gathering and collecting information in relation to civil-military operations, Your Honor.

Senator-Judge Villanueva. So, it's just that? No analyzing, validating, disseminating intelligence-related information?

Mr. Panopio. None. Your Honor. It is only for civil-military operations, Your Honor.

Senator-Judge Villanueva. Yes, that is when you issued the certification. *Pero noong hindi po kayo nag-i-issue ng certification, ito ho ba parte ng trabaho n'yo? Ginagawa n'yo po ito?*

Mr. Panopio. As civil-military operations officer, some of that, Your Honor.

Senator-Judge Villanueva. Yes, *kasi na-encounter kita sa Commission on Appointments.* We confirmed you and *doon sa PIR mo*, it shows *iyong* Intelligence Officers' Basic and Advanced courses. So, *nakita ko lang po dito.*

Colonel, when you signed *itong* certification covering *iyong* three youth leadership summits involving 205 students, were you certifying only that those AFP activities were conducted and not—because you're not aware, let me know if you are aware—and not that DepEd paid rewards or informers—or that information supplied by informers caused those activities to succeed?

Mr. Panopio. Yes, Your Honor.

Senator-Judge Villanueva. *Dahil wala po kayong alam doon?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Villanueva. Lastly, Colonel, given those limitations, would it be correct to say that your certification, standing alone, cannot establish the factual basis for the P15.54 million reported by DepEd as rewards to informers? It cannot stand alone?

Mr. Panopio. I think it has no relation with my certification, Your Honor.

Senator-Judge Villanueva. It has no relation; that's why it cannot stand alone. There must be supporting documents, other supporting documents to support it?

Mr. Panopio. I can only speak for the certification that I issued, Your Honor.

Senator-Judge Villanueva. But were you aware that it would be used by the Department as part of its liquidation report to the Commission on Audit?

Mr. Panopio. No, Your Honor.

Senator-Judge Villanueva. But *kung alam mo na gagamitin*, would you say it does not suffice?

Mr. Panopio. Yes, it will not suffice, Your Honor.

Senator-Judge Villanueva. Thank you. That would be all.

Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Villanueva. Before Senator-Judge Hontiveros, Senator-Judge Pangilinan to avail of his first round. Senator-Judge Pangilinan, you may proceed, Sir, with your, as I understand, singular question.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Okay. Now, *at ang nakipag-usap sa inyo ay si former General Mempin. Si Usec. Mempin ang nakipag-usap para hilingin iyong certification n'yo?*

Mr. Panopio. *Siya po iyong nakipag-usap sa Division Commander*, Your Honor.

Senator-Judge Pangilinan. Yes, and your Division Commander relayed to you the request of Usec. Mempin about the certification of the IEC and the YLS?

Mr. Panopio. Yes, Your Honor.

Senator-Judge Pangilinan. Okay. So, just for the record, *klaro na iyong security officer ng DepEd na kung saan, base sa dating testimonya, ay siya ang humawak, sa kaniya nilipat ang confidential funds, ay hindi nakipag-usap sa inyo?*

Mr. Panopio. *Sa akin po personally, hindi, Your Honor.*

Senator-Judge Pangilinan. Yes, okay.

No other questions, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Pangilinan.

Senator-Judge Hontiveros, again for, hopefully, a singular question as well.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po, Mr. Presiding Officer. Just one topic but three quick questions within it.*

The Presiding Officer. You may proceed, Ma'am.

Senator-Judge Hontiveros. *Magandang hapon pong muli, Colonel. Follow-up po sa tanong ni Senate President kanina, so, dati na pong ginagawa iyong mga activities na ito, YSL, IEC campaign activities, at dati rin na po kayong nagko-coordinate sa mga teachers on the ground, tama po?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Hontiveros. All right, Sir. And *nagbibigay naman po sa inyo—sa Army—ng information, silang mga DepEd teachers, kahit po noong wala pang confidential funds ang DepEd noon, tama po ba?*

Mr. Panopio. About the confidential fund, I have no knowledge, Your Honor, but they are already coordinating with us, Your Honor.

Senator-Judge Hontiveros. *Mula pa sa nakaraang mga taon o kahit dekada na nagdadaos ng ganitong mga gawain ang Philippine Army?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Hontiveros. All right, Sir. So, *huli na lang, tumigil po ba sila, iyong mga teachers on the ground na mag-coordinate sa inyo noong nawala na iyong confidential funds ng DepEd?*

Mr. Panopio. I think, on the ground, *tuloy-tuloy naman po ang coordination ng teachers with the AFP, Your Honor.*

Senator-Judge Hontiveros. *Hanggang sa ngayon po, Colonel?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Hontiveros. All right. *Salamat pong muli, Colonel. Salamat, Mr. Presiding Officer.*

The Presiding Officer. Thank you very much, Senator-Judge Hontiveros. Colonel Panopio, thank you for your time. *Maraming salamat po sa—ah, Senator-Judge Lacson is recognized.*

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Very quickly lang.

The Presiding Officer. My apologies, Colonel Panopio, we're not yet done.

Senator-Judge Lacson. Yes, very quickly. *Anong age bracket ng YLS participants?*

Mr. Panopio. *Base po sa aming document, it's from 15 to 30 years old, Your Honor.*

Senator-Judge Lacson. *Hindi ba 18 to 30?*

Mr. Panopio. Based on our record, it's 15 to 30 *po*, Your Honor.

Senator-Judge Lacson. Fifteen to 30. So, mostly *mga college students ito?*

Mr. Panopio. High school and college students, Your Honor.

Senator-Judge Lacson. *Magkahalo?*

Mr. Panopio. Yes, Your Honor.

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Lacson. *Kung wala na po, maraming salamat po sa inyong panahon, kooperasyon, at pagtugon sa mga katanungan, Colonel Panopio, ng mga abogado mula sa magkabilang partido, gayundin mula sa mga Miyembro ng Hukumang ito. At maraming salamat din po sa inyong serbisyo sa ating bansa.*

You are excused, Sir, and thank you for your time.

Mr. Panopio. Thank you, Sir.

ORDERS OF THE PRESIDING OFFICER

The Presiding Officer addressed the following administrative matters:

1. Directed the Clerk of Court to proceed with the marking of additional exhibits with the Parties at the Recto Room at 4:00 p.m.
2. Directed the Clerk of Court to furnish the Parties with USB copies of the banks' submissions upon completion of the Court's review, as well as the corresponding hard copies thereof.
3. Clarified the order of the Prosecution's presentation of witnesses for the following day. Upon Attorney Sison's inquiry, Representative Luistro stated that Attorney Michael Poa would be presented first, followed by the representative of the Philippine Statistics Authority (PSA) if time permits. The Presiding Officer indicated that this arrangement would be allowed.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until ten o'clock in the morning of Wednesday, September 2, 2026.

It was 2:40 p.m.

I hereby certify to the correctness of the foregoing.

Approved on September 2, 2026

Atty. RENATO N. BANTUG JR.

Clerk of Court

